

IN THE UTAH SUPREME COURT

TYLER JAMES ROBINSON,

Defendant/Petitioner,

vs.

STATE OF UTAH,

Plaintiff/Respondent.

PUBLIC

Appeal No. 20251388-SC

District Court No. 251403576

**PETITION FOR PERMISSION TO APPEAL FROM AN
INTERLOCUTORY ORDER**

On Appeal from Order Denying Motion to Appear Without Restraints, the Fourth
District Court, Utah County, Honorable Tony F. Graf, Jr. Presiding

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INTRODUCTION

Petitioner Tyler Robinson (“Mr. Robinson”) seeks permission to appeal the interlocutory order issued by the Honorable Tony F. Graf, Jr., of the Fourth Judicial District Court denying, in part, detained defendant Tyler Robinson’s motion to appear without restraints at each and every court proceeding. Add. A (*Ruling and Order Granting Defendant’s Motion to Strike and Granting in Part and Denying in Part Defendant’s Motion to Appear in Civilian Clothing and Without Restraints* (hereinafter “Order”)).

THIS COURT HAS ORIGINAL AND EXCLUSIVE APPELLATE JURISDICTION

Mr. Robinson is charged with a capital felony offense, aggravated homicide. Add. B (*Information*). This Court has original appellate jurisdiction over “interlocutory appeals from any court of record involving a charge of a first degree or capital felony.” Utah Code § 78A-3-102(3)(h). “[A]n appeal of an interlocutory order of a court of record involving a charge of a capital felony” is excluded from this Court’s transfer authority. Utah Code § 78A-3-102(4)(a).

STATEMENT OF THE CASE

Mr. Robinson is charged, *inter alia*, by *Information* with the aggravated murder of Charlie Kirk on September 10, 2025, in violation of Utah Code § 76-5-202. Add. B.; *see* Utah Code § 76-5-202. Concurrent with the filing of the *Information*, the State filed notice of its intention to seek the death penalty against Mr. Robinson. Add. C.

Mr. Robinson is 22 years old and, as noted by the district court in its *Order*, “Mr. Robinson has no prior criminal history and no record of misconduct while in custody.” Add. A, at 1; Add. D, at 7 (Hearing Transcript October 27, 2025). According to the *Probable Cause Statement* filed in support of the *Information*, Mr. Robinson surrendered without incident to the Washington County Sheriff on September 11, 2025. Add. B, at 6. He surrendered in the presence of his parents and a family friend who drove them to the Washington County Sheriff’s Office. *Id.*

The death of Mr. Kirk and the nascent capital prosecution of Mr. Robinson have already garnered a vast amount of formal and less than formal media coverage. As aptly put by the district court, “The media interest in Mr. Robinson’s trial is arguably unprecedented in the State of Utah.” Add. A, at 5.

Mr. Robinson’s initial court appearance before the Fourth Judicial District Court, Provo Department, was on September 16, 2025. *See* Add. K (Docket). He appeared, without counsel, by Webex from the Utah County Jail where he was and remains detained. Images of Mr. Robinson appearing, by Webex, for his first appearance were broadcast throughout the world and republished by journalists and others. “Photographs and visual recordings of Mr. Robinson in jail clothing will likely be shared and disseminated in various public platforms.” Add. A, at 5. “The danger of prejudice is compounded by technological advancements that allow the images to be manipulated in ways that do not accurately reflect the truth of the court proceedings.” *Id.*

Counsel were appointed to represent Mr. Robinson on September 26, 2025. In light of the intense amount of written and visual coverage of his first appearance, the

Court and counsel for the parties agreed on September 26, 2025, that Mr. Robinson's second appearance would be via an audio-feed only. Add. J (Minute Entry).

On September 29, 2025, Mr. Robinson again appeared by Webex from the Utah County Jail. At this hearing, the district court entered an order that Mr. Robinson appear in person at the next hearing, scheduled to occur on October 30, 2025. Add. K.

MR. ROBINSON'S MOTION TO APPEAR AT EVERY HEARING IN CIVILIAN CLOTHING AND WITHOUT RESTRAINTS

In advance of the October 30, 2025 hearing, Mr. Robinson moved for an order permitting him to appear at all in-person hearings in civilian clothing and without restraints. *See generally* Add. E ("*Motion*"). The gravamen of Mr. Robinson's motion is that the Eighth Amendment and the Due Process clauses of the Fifth and Fourteenth Amendments to the United States Constitution forbid the shackling of a defendant at *all* judicial proceedings absent an individualized defendant-specific determination by a *judicial officer* that restraints in the courtroom are necessary in order provide for safety and security.

The State opposed Mr. Robinson's motion in its entirety, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Mr. Robinson filed a *Reply* in support of his motion. *See generally* Add. G (“*Reply*”). The district court scheduled a sealed hearing on Mr. Robinson’s *Motion* and the *Motion to Strike* on October 24, 2025. Add. H (*Transport Order*). [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

The district court took the matters under advisement until October 27, 2025. The Court convened a Webex hearing at which it entered its verbal rulings on Mr. Robinson's motion. *Generally*, Add. D. The Court granted the portion of Mr. Robinson's motion seeking leave for him to attend all courtroom proceedings in street clothing, concluding:

The Court intends to hold all of Mr. Robinson's hearings as special settings. Unless unforeseen circumstances arise, he will be the only defendant in the court holding cell when he appears. There is a low likelihood that Mr. Robinson will not be able to be identified or tracked by court security if there is commotion in the courtroom. Given these mitigating circumstances and the potential for prejudicial pre-trial publicity tainting the jury pool, the court ORDERS that Mr. Robinson be dressed in civilian clothing for all pre-trial proceedings. Mr. Robinson's attorneys must coordinate with the Utah County Sheriff's Department to ensure this order is carried out and must provide his clothing at least 72 hours before the hearing.

Add. A, at 5.

The Court denied the portion of Mr. Robinson's motion seeking an order that he appear in court without physical restraints. Instead, the court ordered the Utah County Sheriff to conduct an individualized determination of the quantum of restraints that are necessary. Add. A, at 7. The court made no specific findings about the need for restraints

to ensure the safety and security of the courtroom. The court noted that if Mr. Robinson disagrees with the Sheriff's conclusions, he may bring those concerns to the court's attention in a subsequent motion.

The *Order* states:

The Rules of Judicial Administration require that all in-custody defendants be restrained unless otherwise ordered by the court. *See* UT R J ADMIN 3-414(9)(C). The court has balanced Mr. Robinson's right to a fair trial, right to the effective assistance of counsel, and right to due process with the security concerns apparent in this case. In doing so, the court notes that Mr. Robinson has no criminal history and there is no evidence that he has been disruptive, disrespectful, or a danger since he has been charged.

This case has generated an immense amount of pre-trial publicity. As with many high-profile cases, public interest may both wax and wane, but it is likely to persist. Visual recordings and photographs of Mr. Robinson shackled may give the impression that he is dangerous and may undermine his presumption of innocence. The potential jury pool in Utah County, based on their proximity, is likely to be even more exposed to the images of these proceedings and the messages those images send.

On the other hand, the charges against Mr. Robinson are serious. If convicted, he faces potential sentences of life in prison or death. Though these proceedings will focus on legal matters, both Mr. Robinson and court patrons are likely to feel strong emotions. The landscape that lies ahead requires thoughtful and focused work, and the court will not tolerate disruption or commotion that could have been prevented or mitigated by strong security protocols. The safety of Mr. Robinson, court staff, the attorneys, and patrons is a paramount concern. If a disruption occurs, security personnel will need to quickly secure Mr. Robinson in a place of safety.

Restraints will help facilitate their responsibilities and promote controlled and orderly proceedings.

Therefore, the court DENIES Mr. Robinson's request to be unrestrained during pre-trial proceedings. The court directs the Sheriff to perform an individualized assessment of the risks associated with this case and secure Mr. Robinson in the least restrictive manner available to mitigate those risks. If restraints will impede Mr. Robinson's ability to take notes or consult with counsel, Mr. Robinson may move for the court to assess the level of restraints to ensure he receives the effective assistance of counsel.

Add. A, at 6-7.

The next public hearings scheduled in this matter are on January 16 and January 30, 2026.¹

ISSUES PRESENTED

- I. Does the United States Constitution require the District Court to permit Mr. Robinson to appear and participate in all pre-trial proceedings without restraints, absent an individualized fact-based determination *by the Court* that restraints are necessary in order to provide for safety and security in the courtroom and that there are no less restrictive alternatives?
- II. Was it error for the District Court to delegate to the Utah County Sheriff the initial determination of whether, in the Sheriff's view, the shackling of Mr. Robinson is necessary in order to provide for safety and security in the courthouse and in the courtroom?

Preservation: The issues were presented to the District Court in the motion filed by Mr. Robinson and on which the District Court heard oral argument on October 24, 2025, and thereafter entered its ruling. Add. A; Add. I.

Standard of Review: This Court reviews "for correctness" the question of law as to whether a trial court has strictly complied with constitutional requirements. *State v.*

¹ In light of the fact that Mr. Robinson's next hearing is approximately 60 days away, he has not, *at this time*, sought a stay of proceedings in the District Court.

Holland, 921 P.2d 430, 433 (Utah 1996). Questions of constitutional interpretation are reviewed for correctness. *Schroeder v. Utah Atty. General's Office*, 2015 UT 77, ¶ 16, 358 P.3d 1075. “Constitutional issues, including questions regarding due process, are questions of law that we review for correctness.” *Chen v. Stewart*, 2004 UT 82, ¶ 25, 100 P.3d 1177, *overruled on other grounds by State v. Neilsen*, 2014 UT 10, 326 P.3d 645.

ARGUMENT

This Court should accept Mr. Robinson’s request for interlocutory appeal of the district court’s decision regarding shackling Mr. Robinson in the courtroom for three reasons. First, this case presents the first opportunity for this Court to examine a detained criminal defendant’s right to be free from courtroom shackling since its decision thirty years ago in *State v. Young*, 853 P.2d 327 (Utah 1993)—a decision that has been superseded by the United States Supreme Court decision in *Deck v. Missouri*, 544 U.S. 622, 633 (2005), *abrogated on other grounds by Fry v. Pliler*, 551 U.S. 112 (2007). Second, the district court improperly delegated its constitutional responsibility to conduct an individualized assessment to the Utah County Sheriff’s Office. Finally, this Court should allow this appeal as this is a pretrial issue that will otherwise evade appellate review of the ongoing constitutional violations that Mr. Robinson seeks to remedy in advance of future courtroom proceedings.

In light of Mr. Robinson’s due process right to be free from restraints at *all* judicial proceedings absent a *judicial* determination that restraints are necessary in order to provide for safety and security, and the failure of the State to proffer any specific information or evidence that Mr. Robinson presents a risk to the safety of courtroom

participants or the security of the courtroom or courthouse, Add. F, the district court's decision to deny Mr. Robinson's motion and to delegate the individualized determination to law enforcement officers must be reversed. In addition, this Court should direct the district court to conduct its own fact-based individualized determination rather than relying on law enforcement to do so.

I. This Court Should Grant Interlocutory Review Because This Court Has Not Considered the Constitutional Implications of Shackling a Criminal Defendant Since the United States Supreme Court Decision in *Deck v. Missouri*.

This Court last squarely addressed the constitutional implications of shackling a criminal defendant during courtroom proceedings in *State v. Young*, 853 P.2d 327 (Utah 1993). In *Young*, this Court held that the presumption against shackling during a jury trial does not apply in a penalty proceeding after the return of a finding of guilt. *Id.* at 350. Twelve years later, the United States Supreme Court held otherwise. It concluded that a defendant's due process rights *are* implicated by shackling during a capital sentencing proceeding. *Deck*, 544 U.S. at 633. The United States Supreme Court's holding in *Deck* is directly contrary to this Court's earlier decision in *Young*, and this Court has not revisited the scope of the constitutional prohibition against shackling since *Young*. The *Deck* Court reasoned,

The considerations that militate against the routine use of visible shackles during the guilt phase of a criminal trial apply with like force to penalty proceedings in capital cases. This is obviously so in respect to the latter two considerations mentioned, securing a meaningful defense and maintaining dignified proceedings. It is less obviously so in respect to the first consideration mentioned, for the defendant's conviction

means that the presumption of innocence no longer applies. Hence shackles do not undermine the jury's effort to apply that presumption. Nonetheless, shackles at the penalty phase threaten related concerns. Although the jury is no longer deciding between guilt and innocence, it is deciding between life and death. That decision, given the “ ‘severity’ ” and “ ‘finality’ ” of the sanction, is no less important than the decision about guilt. . .

Neither is accuracy in making that decision any less critical. The Court has stressed the “acute need” for reliable decisionmaking when the death penalty is at issue. . . The appearance of the offender during the penalty phase in shackles, however, almost inevitably implies to a jury, as a matter of common sense, that court authorities consider the offender a danger to the community—often a statutory aggravator and nearly always a relevant factor in jury decisionmaking, even where the State does not specifically argue the point. . . . It also almost inevitably affects adversely the jury's perception of the character of the defendant. . . . And it thereby inevitably undermines the jury's ability to weigh accurately all relevant considerations—considerations that are often unquantifiable and elusive—when it determines whether a defendant deserves death. In these ways, the use of shackles can be a “thumb [on] death's side of the scale.”

Deck, 544 U.S. at 632–33 (internal citations omitted).

The rationale of the Supreme Court's decision in *Deck* teaches that the potential due process violations arising from the shackling of a criminal defendant while in the courtroom arise from the outset of their criminal proceeding and not only once a jury has been impaneled. *Deck*, at 630–32. This is especially true where, as here, there is an overwhelming public interest in every aspect of the court proceedings. Any shackling of Mr. Robinson in future court proceedings will be known to the community through traditional and non-traditional media sources, as the level of public interest in this matter to date has already established.

The United States Supreme Court explained in *Deck* that there are “three fundamental legal principles” which are protected by “[j]udicial hostility to shackling”: 1) preserving the presumption of innocence; 2) ensuring that a defendant is able to participate meaningfully in their defense, and 3) maintaining the dignity of the judicial process. *Id.* at 630–31.

Twelve years after the United States Supreme Court’s decision in *Deck*, the United States Court of Appeals for the Ninth Circuit held that the right to be free from unwarranted courtroom restraints “applies whether the proceeding is pretrial, trial, or sentencing, with or without a jury.” *United States v. Sanchez-Gomez*, 859 F.3d 649, 661 (9th Cir. 2017) (*en banc*), *vacated on other grounds*, 584 U.S. 381 (2018).² While the State argued below that the *en banc* opinion in *Sanchez-Gomez* is of no moment because it was subsequently vacated, albeit on other grounds, the thoughtful analysis in *Sanchez-Gomez* should guide all courts considering the functional consequences of what the Supreme Court described as “judicial hostility to shackling.”

The Ninth Circuit explained:

This right to be free from unwarranted shackles no matter the proceeding respects our foundational principle that defendants are innocent until proven guilty. The principle isn’t limited to juries or trial proceedings. It includes the perception of any person who may walk into a public courtroom, as well as those of the jury, the judge and court personnel. A

² The Supreme court vacated the *en banc* opinion of the Ninth Circuit both on mootness grounds and because the Ninth Circuit improperly treated the four individual defendants who were challenging the United States Marshal’s Service shackling policy as a class of plaintiffs. The Supreme Court did not comment on the Ninth Circuit’s constitutional analysis of shackling. *United States v. Sanchez-Gomez*, 584 U.S. 381, 394 (2018) (“[W]e take no position on the issue.”)

presumptively innocent defendant has the right to be treated with respect and dignity in a public courtroom, not like a bear on a chain. *See Zuber*, 118 F.3d at 106 (Cardamone, J., concurring) (“The fact that the proceeding is non-jury does not diminish the degradation a prisoner suffers when needlessly paraded about a courtroom, like a dancing bear on a lead, wearing belly chains and manacles.”).

And it’s not just about the defendant. The right also maintains courtroom decorum and dignity:

“The courtroom’s formal dignity, which includes the respectful treatment of defendants, reflects the importance of the matter at issue, guilt or innocence, and the gravity with which Americans consider any deprivation of an individual’s liberty through criminal punishment. And it reflects a seriousness of purpose that helps to explain the judicial system’s power to inspire the confidence and to affect the behavior of a general public whose demands for justice our courts seek to serve.”

Deck, 544 U.S. at 631. The most visible and public manifestation of our criminal justice system is the courtroom. Courtrooms are palaces of justice, imbued with a majesty that reflects the gravity of proceedings designed to deprive a person of liberty or even life. A member of the public who wanders into a criminal courtroom must immediately perceive that it is a place where justice is administered with due regard to individuals whom the law presumes to be innocent. That perception cannot prevail if defendants are marched in like convicts on a chain gang. Both the defendant and the public have the right to a dignified, inspiring and open court process. Thus, innocent defendants may not be shackled at any point in the courtroom unless there is an individualized showing of need.

Sanchez-Gomez, 859 F.3d at 661–62.

Moreover, long after *Sanchez-Gomez* was vacated on other grounds, other state and federal courts have concluded that the qualified due process right to be free from shackling inside a courtroom applies at non-jury proceedings. *See Add. E*, at 5; *Add. G*, at 12–13. As recently as last year, the Washington Supreme Court held that “the due

process right to appear without unjustified restraints applies to every court appearance, including nonjury pretrial hearings.” *State v. Luthi*, 549 P.3d. 712, 713–14 (Wash. 2024). A federal district court in Virginia reached the same conclusion in 2024, holding that “after carefully reviewing this case law, this court would be remiss if it didn’t state its firm conviction that a broader, qualified right of a criminal defendant to be unshackled exists and should be recognized at non-jury proceedings.” *United States v. Williams*, 736 F. Supp. 3d 400, 406–07 (W.D. Va. 2024).

Even before *Sanchez-Gomez* was decided, state courts had already understood the rationale of *Deck* to apply to all court proceedings and not just jury trials. In 2006, the Illinois Supreme Court explained that “even where there is no jury, any unnecessary restraint is impermissible because it hinders the defendant’s ability to assist his counsel, runs afoul of the presumption of innocence, and demeans both the defendant and the proceedings.” *People v. Allen*, 856 N.E.2d 349, 353 (Ill. 2006). In 2012, New York’s highest court explained that “[t]he routine and unexplained use of visible restraints does violence to each of [the three principles set out in *Deck*], essential pillars of a fair and civilized criminal justice system that are no less implicated when the factfinder is the trial judge rather than a jury.” *People v. Best*, 979 N.E.2d 1187, 1189 (N.Y. 2012).

In fact, over three decades ago, the California Supreme Court explained:

As we have noted, the *Harrington* rule of “evident necessity” serves not merely to insulate the jury from prejudice, but to maintain the composure and dignity of the individual accused, and to preserve respect for the judicial system as a whole; these are paramount values to be preserved irrespective of whether a jury is present during the proceeding. Moreover, the unjustified use of restraints could, in a real sense, impair

the ability of the defendant to communicate effectively with counsel ...

People v. Fierro, 821 P.2d 1302, 1322 (Cal. 1991) (*en banc*).³

The same year that *Fierro* was decided the Utah Court of Appeals observed that “shackles should be used only as a ‘last resort’ in ‘extreme cases’.” *State v. Mitchell*, 824 P.2d 469, 474 (Utah Ct. App. 1991).

Decisions of the United States Supreme Court, federal courts, and the highest courts in a number of states persuasively establish that Mr. Robinson has a qualified due process right to be free from shackling at every court proceeding in the capital prosecution now pending in Provo. This Court’s pre-*Deck* decision in *State v. Young*, issued more than 30 years ago, is presently this Court’s last word on the constitutional limitations on shackling. This Court should permit appeal so that this Court can provide constitutionally sound guidelines to the district court that is informed by the evolution in the constitutional doctrine that has emerged since *Young* was decided.

³ The “Harrington rule” refers to a decision of the California Supreme Court in 1871 which described the common law rule that a prisoner “brought into the presence of a Court for trial ... was entitled to appear free of all manner of shackles or bonds” *People v. Harrington*, 42 Cal. 165 (1871), the Court explained that “any order or action of the Court which, without evident necessity, imposes physical burdens, pains and restraints upon a prisoner during the progress of his trial, inevitably tends to confuse and embarrass his mental faculties, and thereby materially to abridge and prejudicially affect his constitutional rights of defense” *Id.* at 168. The common law rule was also recognized by the California Legislature with the enactment in 1872 of section 688. That section, as amended, provides: “No person charged with a public offense may be subjected, before conviction, to any more restraint than is necessary for his detention to answer the charge.” *Fierro*, 821 P.2d at 1321.

II. This Court Should Grant Interlocutory Review Because the District Court Violated Mr. Robinson’s Constitutional Rights by Delegating the Individualized Assessment to the Sheriff.

In addition to the opportunity to clarify Utah law on shackling defendants in the courtroom, this Court should permit interlocutory appeal because the district court was incorrect in delegating the individualized assessment of appropriate restraints to the Utah County Sheriff. While the district court’s order purports to balance Mr. Robinson’s constitutional rights with security concerns, the district court ultimately delegates that “individualized assessment of the risks associated with this case” to the Sheriff and entrusts the Sheriff with securing Mr. Robinson “in the least restrictive manner available to mitigate those risks.” Add. A, at 6–7.

As noted in Mr. Robinson’s Motion and during the hearing, to comport with Due Process protections, district courts are required to conduct an individualized assessment regarding courtroom security. *See* Add. E, at 6–7; Add. I, at 32, 41, 65. The Tenth Circuit has explained that the trial court has a “legal duty to make a thorough and independent determination” of the need for courtroom security devices. *United States v. Wardell*, 591 F.3d 1279, 1294–95 (10th Cir. 2009) (collecting cases). The Seventh Circuit has explained that while “a trial court’s decisions about the required level of security during a trial are entitled to deference, those decisions must be made by the court itself; the trial judge may not delegate his discretion to another party.” *Lopez v. Thurmer*, 573 F.3d 484, 492 n.2 (7th Cir. 2009).

In *Sanchez-Gomez*, the Ninth Circuit counseled that “[c]ourts cannot delegate this constitutional question to those who provide security...” *Sanchez-Gomez*, 859 F.3d at 661. The Sixth Circuit has explained that a district court’s blind adherence to a corrections officer’s recommendation, without making any individualized determinations or specific findings, amounts to an abuse of discretion. *United States v. Miller*, 531 F.3d 340, 345 (6th Cir. 2008). “The use of physical restraints is subject to close *judicial*, not law enforcement, scrutiny.” *Gonzalez v. Piller*, 341 F.3d 897, 902 (9th Cir. 2003) (emphasis in original); *United States v. Durham*, 287 F.3d 1297, 1304 (11th Cir. 2002) (same).

Here, the district court’s order purports to balance Mr. Robinson’s constitutional rights with security concerns. However, the district court ultimately fails to conduct the appropriate balancing by delegating an “individualized assessment of the risks associated with this case” to the Sheriff and entrusts the Sheriff with securing Mr. Robinson “in the least restrictive manner available to mitigate those risks.” Add. A, at 6–7. Moreover, the district court’s order improperly limits the due process factors that are part of the balancing analysis to “Mr. Robinson’s ability to take notes or consult with counsel,” Add. A, at 7, disregarding the constitutional principles that informed the Supreme Court decision in *Deck* and numerous decisions since.

While it would be appropriate for the Sheriff to identify a number of alternatives to shackling for the district court to consider, it is not proper for the district court to delegate to the Sheriff the balancing of interests. This Court so held over 40 years ago in *Chess v. Smith*, where it explained that it is the trial judge who has the analogous

responsibility to inquire as to why a defendant is appearing in prison clothes. 617 P.2d 341, 345 (Utah 1980). In *Young*, this Court explained that “the trial court should look at the particular facts of the case and the conduct of the proceedings and should balance the need for safety and security in the courtroom against the potential for prejudice.” 853 P.2d at 350–51.

The district court’s delegation to the Sheriff is inconsistent with constitutional guidance from this and many other courts and is a second independent reason why this interlocutory appeal should proceed.

III. This Court Should Grant Interlocutory Review Because Appellate Review Only After the Conclusion of Proceedings in the District Court Will Not Remedy the Constitutional Violations That Will Occur at Each Hearing Absent an Individualized Defendant-Specific Determination by the District Court.

Mr. Robinson’s qualified constitutional right to be free from courtroom shackling is independent of the ultimate outcome of his criminal proceeding. It is a right which accrues from the outset of the prosecution, and which attaches at each and every hearing. The harms described by the Supreme Court in *Deck* and by the other courts whose opinions are cited *infra* cannot be wholly remedied after proceedings have concluded, even if there is substantial evidence that shackling has affected the reliability of the ultimate outcome of the case. Moreover, the Supreme Court’s description of two of the fundamental reasons why the judiciary has traditionally been hostile to shackling in the courtroom, the defendant’s Sixth Amendment right to meaningfully consult with his counsel while in court and the dignity and decorum of court proceedings that are hallmarks of our judicial system, cannot easily be measured by looking at case outcomes.

The district court and the Sheriff require this Court’s guidance now, at the outset of Mr. Robinson’s capital proceeding, not only after it concludes, especially in light of the fact that this Court has not had occasion to provide guidance to Utah’s lower courts since its decision in *Young* was effectively abrogated by the United States Supreme Court’s decision in *Deck*.

The record already reflects that the district court's delegation to the Sheriff of the constitutional balancing of interests that the court must conduct itself is a folly. ■■■

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disruption to court proceedings, then the district court should utilize its broad discretion to control public access to and conduct within the courthouse and in the courtroom itself, but the shackling of Mr. Robinson in order to avoid the potential risk of disruptions from elsewhere is not proper.

For the reasons set forth above, Mr. Robinson's petition for permission to pursue this interlocutory appeal should be granted.

RESPECTFULLY SUBMITTED THIS 17th day of November, 2025.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/ Michael N. Burt
Michael N. Burt

/s/ Richard G. Novak
Richard G. Novak

/s/ Staci Visser
Staci Visser
Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF COMPLIANCE

I hereby certify that the public version of this petition complies with Utah Rule of Appellate Procedure 21(h), having removed or redacted all non-public information.

DATED this 17th day of November, 2025.

/s/ Staci Visser

CERTIFICATE OF SERVICE

I hereby certify that on November 17, 2025, I e-filed and therefore served the following:

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/s/ Staci Visser

Addendum A

**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

RULING AND ORDER

**GRANTING DEFENDANT'S MOTION
TO STRIKE and**

**GRANTING IN PART AND DENYING IN
PART DEFENDANT'S MOTION TO
APPEAR IN CIVILIAN CLOTHING AND
WITHOUT RESTRAINTS**

Case No. 251403576

Judge Tony F. Graf, Jr.

Defendant Tyler James Robinson moves for an order permitting him to appear in civilian clothing and without physical restraints at all pre-trial hearings. (Dkt. 83).

Due to the potential for the disclosure of court security protocols, the court held a closed hearing on October 24, 2025. The parties discussed the following issues:

- Mr. Robinson's Motion to Strike the Sheriff's Response;
- Mr. Robinson's Motion to Appear in Civilian Clothing and without Physical Restraints;
- The Sheriff and Mr. Robinson's request to exclude visual recording and photographs in the courtroom; and
- The State's request to have all non-evidentiary hearings held remotely.

The parties stipulated that the State's motion to conduct all non-evidentiary hearings virtually and the parties' request to limit all electronic media coverage needs further briefing. Those issues are not yet ripe for decision. To facilitate the briefing on those two issues, the court orders as follows:

- If the State seeks to have all non-evidentiary hearings conducted over WebEx, the State must file a motion. The court will not rely on the briefing already provided. A separate motion is required. The time for a response and reply will be governed by rule. As with all motions, the parties must file a request to submit and request a hearing, if desired.
- If the parties seek to have all electronic media coverage limited or restricted during in-court hearings, the parties may file a joint motion. The court will not rely on the briefing already provided. In their motion, the parties must address the factors outlined in Rule 4-401.01(2) of the Utah Rules of Judicial Administration. The time for response and reply will be governed by rule, and the parties must file a request to submit when the matter is ripe for decision.

The court took the Motion to Strike and the Motion to Appear in Civilian Clothing and Without Restraint under advisement. The court now issues the following RULING and ORDER:

1. Defendant's Motion to Strike the Sheriff's Response

The prosecution and the Sheriff's Department filed a joint opposition to Mr. Robinson's motion to wear civilian clothing and appear without physical restraints. (Dkt. 109). Mr. Robinson moved to strike the Sheriff's response as procedurally improper. (Dkt. 111).

At the October 24, 2025, hearing, both parties and the Sheriff's Office agreed that the Sheriff is not a party in this case. The State and Sheriff's Department maintained their position that the Sheriff has standing to file memoranda as a non-party, whereas Mr. Robinson argued the Sheriff has no authority to file memoranda or, at the very least, should be filing separately from the prosecution. However, Mr. Robinson does not dispute that the court may consider the Sheriff's position on courtroom security and do not oppose the court's consideration of that position as written in the State's opposing memorandum.

The Sheriff's Department is not a party in this litigation and its joint memorandum filed with the prosecution is procedurally improper. Therefore, Defendant's Motion to Strike the Sheriff's opposing memorandum is GRANTED.

Even so, Rule 3-414 of the Utah Rules of Judicial Administration requires the court to coordinate courtroom security with the Sheriff's Department. Therefore, as agreed to by Defendant, the court has considered the *substance* of the State and Sheriff's opposing memorandum. The court has also considered the memorandum drafted by the Court Security Director, which was attached to the State's opposition.

If, in the future, the parties have a security concern specific to this case, the parties may present evidence from the Sheriff's Department through affidavits, declarations, exhibits, or witness testimony. This order does not restrict or limit the Sheriff's Department from communicating and coordinating with the court as allowed by statute and by Rule 3-414 of the Rules of Judicial Administration, nor does it prevent the Sheriff's Department from exercising its rights in any other way as allowed by law.

2. Defendant's Motion to Appear in Civilian Clothing and Without Physical Restraints

As an initial matter, the parties agree Defendant has a right to the accoutrements of innocence during a jury trial, including the right to be dressed in civilian clothing and the right to have any physical restraints hidden from a jury's view.

Defendant's motion seeks additional relief beyond his trial rights: he moves to appear without restraints and in civilian clothing at all pre-trial proceedings. Both requests are deviations from the general court security plan, and the court has considered each request separately.

“[A] defendant's right to the physical indicia of innocence must be weighed against ‘the essential state policy of providing security in the courtroom.’ *State v. Lemons*, 844 P.2d 378, 380 (Utah Ct. App. 1992) (quoting *State v. Mitchell*, 824 P.2d 469, 473 (Utah Ct. App. 1991)). The scope of the parties’ arguments and requested relief also impacts the media’s right to report the news and the public’s interest in government transparency. The appropriate balance of each of these concerns implicates the integrity and dignity of the judicial process, which “includes the respectful treatment of defendants.” *Deck v. Missouri*, 544 U.S. 622, 631 (2005); see UT R J ADMIN 3-414(1)(A).

a. Defendant’s request to appear in civilian clothing is GRANTED

Defendant first requests that he be allowed to appear in civilian clothing during all pre-trial hearings. He cites to the pervasive media coverage of his initial hearing and argues that “the repeated and ubiquitous display of Mr. Robinson in jail garb . . . will undoubtedly be viewed by prospective jurors and will inevitably lead to prospective juror perception that he is guilty and deserving of death.” (Def.’s Mot. at 15). In his view, allowing Mr. Robinson to appear in civilian clothing is a “minor inconvenience” compared to the real danger of tainting the prospective jury pool and depriving him of a fair trial.

In response, the State, the Sheriff’s Department, and the Court Security Director argue that dressing defendants in jail clothing assists in securing safety and control because it aids court security in easily identifying Mr. Robinson in the event of a disruption. In addition, the opposition notes that there is no controlling precedent that requires the court to allow Mr. Robinson to dress in civilian clothing pre-trial.

Upon balancing the interests at stake, the court concludes that Mr. Robinson’s right to the presumption of innocence and an unbiased jury supersedes the security concerns of dressing in

civilian clothing in this case. The media interest in Mr. Robinson's trial is arguably unprecedented in the State of Utah. Photographs and visual recordings of Mr. Robinson in jail clothing will likely be shared and disseminated in various public platforms. There is a strong likelihood that a substantial number of potential jurors in Utah County will view these images and may associate Mr. Robinson's jail clothing with indicia of guilt. The danger of prejudice is compounded by technological advancements that allow the images to be manipulated in ways that do not accurately reflect the truth of the court proceedings.

The court intends to hold all of Mr. Robinson's hearings as special settings. Unless unforeseen circumstances arise, he will be the only defendant in the court holding cell when he appears. There is a low likelihood that Mr. Robinson will not be able to be identified or tracked by court security if there is commotion in the courtroom. Given these mitigating circumstances and the potential for prejudicial pre-trial publicity tainting the jury pool, the court ORDERS that Mr. Robinson be dressed in civilian clothing for all pre-trial proceedings. Mr. Robinson's attorneys must coordinate with the Utah County Sheriff's Department to ensure this order is carried out and must provide his clothing at least 72 hours before the hearing.

b. Defendant's request to appear without restraints is DENIED

Mr. Robinson next requests that he appear for all pre-trial proceedings without restraints. Mr. Robinson cites to *Deck v. Missouri* and *United States v. Sanchez-Gomez*, 859 F.3d 649 (9th Cir. 2017), vacated and remanded, 584 U.S. 381 (2018) to support his motion. Although he recognizes that *Deck*'s holding is limited to shackling in front of a jury at trial, Mr. Robinson argues the constitutional dangers articulated in *Deck* extend to pre-trial proceedings, particularly in highly publicized cases such as Mr. Robinson's.

Mr. Robinson argues 1) visibly restraining him could taint the potential jury pool and undermine the presumption of his innocence; 2) restraining him without an individualized determination that he is an escape risk or potentially dangerous violates his right to due process and denigrates the dignity of the proceedings; and 3) restraints potentially impact his ability to effectively participate in the proceedings by inhibiting his ability to take notes and communicate with his counsel. His counsel represents that he has no criminal history and has had no disciplinary incidents while incarcerated at the Utah County jail. Thus, the need for restraints is currently unjustified.

The Rules of Judicial Administration require that all in-custody defendants be restrained unless otherwise ordered by the court. *See* UT R J ADMIN 3-414(9)(C). The court has balanced Mr. Robinson's right to a fair trial, right to the effective assistance of counsel, and right to due process with the security concerns apparent in this case. In doing so, the court notes that Mr. Robinson has no criminal history and there is no evidence that he has been disruptive, disrespectful, or a danger since he has been charged.

This case has generated an immense amount of pre-trial publicity. As with many high-profile cases, public interest may both wax and wane, but it is likely to persist. Visual recordings and photographs of Mr. Robinson shackled may give the impression that he is dangerous and may undermine his presumption of innocence. The potential jury pool in Utah County, based on their proximity, is likely to be even more exposed to the images of these proceedings and the messages those images send.

On the other hand, the charges against Mr. Robinson are serious. If convicted, he faces potential sentences of life in prison or death. Though these proceedings will focus on legal matters, both Mr. Robinson and court patrons are likely to feel strong emotions. The landscape

that lies ahead requires thoughtful and focused work, and the court will not tolerate disruption or commotion that could have been prevented or mitigated by strong security protocols. The safety of Mr. Robinson, court staff, the attorneys, and patrons is a paramount concern. If a disruption occurs, security personnel will need to quickly secure Mr. Robinson in a place of safety. Restraints will help facilitate their responsibilities and promote controlled and orderly proceedings.

Therefore, the court DENIES Mr. Robinson's request to be unrestrained during pre-trial proceedings. The court directs the Sheriff to perform an individualized assessment of the risks associated with this case and secure Mr. Robinson in the least restrictive manner available to mitigate those risks. If restraints will impede Mr. Robinson's ability to take notes or consult with counsel, Mr. Robinson may move for the court to assess the level of restraints to ensure he receives the effective assistance of counsel.

c. The court will amend the decorum order to mitigate prejudice

To mitigate pre-trial prejudice, the court will amend the Standing Decorum Order to prohibit the media from visually recording or photographing Mr. Robinson's physical restraints. To facilitate this order, the court will also order that the media is prohibited from visually recording or photographing him while he is entering the courtroom, exiting the courtroom, or standing up in the courtroom. In making this amendment, the court has considered the factors listed in Rule 4-401.01(2) and finds as follows:

As already discussed, this is a serious case that has garnered national attention. Visual representations of Mr. Robinson in restraints will likely be broadcast over various platforms. Given their proximity to the case, members of Utah County are likely to see images of Mr.

Robinson's restraints. Those images may remain in their minds and give an impression that he is dangerous, an impression that could undermine his presumption of innocence.

The court is committed to open and fair proceedings and recognizes the public's interest in and newsworthiness of these proceedings. The court sees a benefit in allowing the public to observe the proceeding through electronic media coverage. Allowing the public into the courtroom through electronic means increases confidence in our justice system and serves as both an educational tool and an incentive for the public to increase their civic engagement. Limiting visual recording and photography of Mr. Robinson in restraints will not denigrate the public and media's interest. This ruling promotes a healthy balance between preserving Mr. Robinson's constitutional rights and the media and the public's interest in viewing the proceedings.

Accordingly, Defendant's Motion to Wear Civilian Clothing and to Appear Without Restraints is GRANTED IN PART and DENIED IN PART.

Dated this 27th day of October, 2025.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge



CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

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10/27/2025

/s/ TREENA HANSEN

Date: _____

Signature

Addendum B

JEFFREY S. GRAY # 5852
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**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,	INFORMATION
Plaintiff,	
vs.	
TYLER JAMES ROBINSON	Case No.
894 W Cimarron Dr	Judge
Washington, UT 84780	OTN: 70090584
DOB: 4/16/2003	BAIL:
Defendant.	

The State of Utah, by and through the Utah County Attorney's Office, charges the defendant with the commission of the following offense(s):

COUNT 1: AGGRAVATED MURDER, a Capital Felony, in violation of Utah Code Ann. § 76-5-202, in that on September 10, 2025, in Utah County, the defendant, Tyler James Robinson, intentionally or knowingly caused the death of Charlie Kirk under the following circumstance: (iii) the defendant knowingly created a great risk of death to another individual other than Charlie Kirk and the defendant.

NOTICE: Conviction of this offense may carry the death penalty, or, pursuant to Utah Code 76-3-207.7, a mandatory term of imprisonment: (i) for life without parole; or (ii) an indeterminate term of not less than 25 years and that may be for life.

VICTIM TARGETING ENHANCEMENT: In violation of Utah Code Ann. § 76-3-203.14(2), Tyler James Robinson intentionally selected Charlie Kirk because of Tyler James Robinson's belief or perception regarding Charlie Kirk's political expression.

NOTICE: If the trier of fact finds beyond a reasonable doubt that the victim targeting enhancement applies, the sentencing judge or the Board of Pardons and Parole shall consider the defendant's selection of the victim as an aggravating factor.

VIOLENT OFFENSE COMMITTED IN THE PRESENCE OF A CHILD – AGGRAVATING FACTOR: The sentencing judge or the Board of Pardons and Parole shall consider as an aggravating factor in their deliberations that the defendant committed a violent criminal offense in the presence of a child.

COUNT 2: FELONY DISCHARGE OF A FIREARM CAUSING SERIOUS BODILY INJURY, a First Degree Felony, in violation of Utah Code Ann. § 76-11-210(2) and (3)(c), in that on September 10, 2025, in Utah County, the defendant, Tyler James Robinson, discharged a firearm in the direction of Charlie Kirk, knowing or having reason to believe that Charlie Kirk may be endangered by the discharge of the firearm, and the act caused serious bodily injury to Charlie Kirk.

VICTIM TARGETING ENHANCEMENT: In violation of Utah Code Ann. § 76-3-203.14(2), Tyler James Robinson intentionally selected Charlie Kirk because of Tyler James Robinson's belief or perception regarding Charlie Kirk's political expression.

NOTICE: If the trier of fact finds beyond a reasonable doubt that the victim targeting enhancement applies, the sentencing judge or the Board of Pardons and Parole shall consider the defendant's selection of the victim as an aggravating factor.

VIOLENT OFFENSE COMMITTED IN THE PRESENCE OF A CHILD – AGGRAVATING FACTOR: The sentencing judge or the Board of Pardons and Parole shall consider as an aggravating factor in their deliberations that the defendant committed a violent criminal offense in the presence of a child.

COUNT 3: OBSTRUCTION OF JUSTICE, a Second Degree Felony, in violation of Utah Code Ann. § 76-8-306(2), in that on September 10, 2025, in Utah County, the defendant, Tyler James Robinson, with intent to hinder, delay, or prevent the investigation, apprehension, prosecution, conviction, or punishment of any person regarding conduct that constitutes a criminal offense: (c) concealed or removed the firearm used to shoot Charlie Kirk; and the conduct that constitutes an offense would be a capital felony or first degree felony.

COUNT 4: OBSTRUCTION OF JUSTICE, a Second Degree Felony, in violation of Utah Code Ann. § 76-8-306(2), in that on or about September 11, 2025, in Utah County, the defendant, Tyler James Robinson, with intent to hinder, delay, or prevent the investigation, apprehension,

prosecution, conviction, or punishment of any person regarding conduct that constitutes a criminal offense: (c) destroyed, concealed, or removed the clothing he wore during the shooting; and the conduct that constitutes an offense would be a capital felony or first degree felony.

COUNT 5: TAMPERING WITH A WITNESS, a Third Degree Felony, in violation of Utah Code Ann. § 76-8-508, in that on or about September 10, 2025, in Utah County, the defendant, Tyler James Robinson, (a)(i) believed that an official proceeding or investigation was pending or about to be instituted; or (ii) intended to prevent an official proceeding or investigation; and (b) attempted to induce or otherwise cause his roommate to (ii) withhold testimony, information, a document, or an item, to wit: directing his roommate to delete incriminating text messages.

COUNT 6: TAMPERING WITH A WITNESS, a Third Degree Felony, in violation of Utah Code Ann. § 76-8-508, in that on or about September 11, 2025, in Utah County, the defendant, Tyler James Robinson, (a)(i) believed that an official proceeding or investigation was pending or about to be instituted; or (ii) intended to prevent an official proceeding or investigation; and (b) attempted to induce or otherwise cause his roommate to (ii) withhold testimony or information, to wit: directing his roommate to stay silent if police questioned the roommate.

COUNT 7: VIOLENT OFFENSE COMMITTED IN THE PRESENCE OF A CHILD, a Class A Misdemeanor, in violation of Utah Code Ann. § 76-3-203.10(2) and § 76-3-203.14(3)(a)(ii) in that on or about September 10, 2025, in Utah County, the defendant, Tyler James Robinson, committed criminal homicide in the physical presence of a child younger than 14 years old, with knowledge that a child was present and may have seen or heard the commission of the criminal homicide.

VICTIM TARGETING ENHANCEMENT: In violation of Utah Code Ann. § 76-3-203.14(2), Tyler James Robinson intentionally selected Charlie Kirk because of Tyler James Robinson's belief or perception regarding Charlie Kirk's political expression.

PROBABLE CAUSE STATEMENT: Brian Davis of the Utah State Bureau of Investigations, having probable cause to believe that the defendant committed the above-listed offense(s), submitted the following evidence in support of the filing of this Information:

On September 10, 2025, at approximately 12:23 p.m., Charlie Kirk was shot and killed while speaking to a large crowd on the campus of Utah Valley University (UVU) in Orem, Utah. (Counts 1 and 2). Police found the suspected murder weapon, a bolt-action .30-06 rifle nearby. Over the next approximately 33 hours, police conducted a manhunt for the shooter until the evening of September 11, 2025, when Tyler James Robinson surrendered to police at the Washington County Sheriff's Office. DNA consistent with Robinson was found on the rifle's trigger. After shooting Mr. Kirk, Robinson hid the gun (Count 3), discarded the clothing he wore when he fired the rifle (Count 4), and told his lover/roommate to delete incriminating text messages

(Count 5) and not to talk to police (Count 6). Children were present at the time of the shooting (Count 7).

The Shooting.

Turning Point USA, a non-profit organization founded in 2012 by Charlie Kirk, organized a public, outdoor event to be held at noon on September 10, 2025, at UVU. The event was the first in a series of similar events to be held at college campuses nationwide. Mr. Kirk is a well-known conservative activist, famous for these types of events where he discusses various political issues and debates with audience members. His events and comments have garnered a significant number of supporters and drawn the ire of many who disagree with his political views.

The event at UVU was announced far in advance and garnered significant publicity and interest. Consequently, several hundred people attended. Mr. Kirk was interacting with the crowd before the event officially got underway. Then, approximately at noon, Mr. Kirk seated himself under a portable canopy behind a table and microphone. He began speaking to the crowd and fielding questions from attendees, a format Mr. Kirk commonly used at his events. Mr. Kirk allowed his questioners to approach a microphone positioned directly in front of him.

Mr. Kirk's team members were very close to him on his right and left, as well as some behind his canopy and others at various close locations near him. The large crowd surrounded Mr. Kirk on three sides. Temporary metal fencing separated attendees from Mr. Kirk by only a matter of feet. Directly above and behind Mr. Kirk was the UVU Hall of Flags, an indoor walkway spanning several hundred feet with floor-to-ceiling glass windows which overlook the plaza where Mr. Kirk was seated. People were in the walkway at the time of the shooting.

Approximately fifteen minutes into the event, Mr. Kirk was answering a question about mass shootings by transgender individuals when a gunshot rang out. The bullet struck Mr. Kirk in the neck. He slumped to the ground almost immediately. The bullet's trajectory passed closely to several other individuals beside Mr. Kirk, including the questioner who was standing directly in front of Mr. Kirk. Children were visible near Mr. Kirk's stage when he was shot.

Mr. Kirk was rushed to a nearby hospital where he was declared deceased. The Medical Examiner's report is pending.

The UVU Surveillance Investigation.

At the moment of the shot, a UVU police officer (the UVU Officer) was watching the crowd from an elevated vantage point. As soon as he heard the shot, he began to scan the area for threats. Believing the shot came from a rifle because of its sound, he looked for potential sniper positions. He noted a roof area approximately 160 yards away from Mr. Kirk as a potential shooting position and rushed there to look for evidence.

The suspected shooting position is adjacent to an open, publicly-accessible walkway. To access the suspected location, a person must climb over a railing and then drop to the roof only slightly below. The UVU officer climbed over the railing and down onto the roof. He then walked to the suspected shooting position and confirmed a clear shooting corridor between the position and Mr. Kirk's seat. He also noticed markings in the gravel rooftop consistent with a sniper having lain on the roof – impressions in the gravel potentially left by the elbows, knees, and feet of a person in a prone shooting position.

Police reviewed surveillance from the camera covering the roof and discovered that it recorded an individual dressed in dark clothing cross the railing from the public walkway and drop onto the roof at approximately 12:15 p.m. Although the individual moved out of the camera's view for a short time, the camera again captured the individual running across the roof and then low-crawling to the area the UVU Officer recognized as where the suspected sniper had dropped into a prone shooting position. After a short time, which matches the known time of the shot, the individual arose and ran across the roof to the northeast.

This discovery led to an intensive review of UVU surveillance recordings to attempt to track and identify the suspect. Surveillance revealed the following. At approximately 11:51 a.m., the suspect entered campus from the north. He is seen wearing a black shirt with an American flag in its center, a dark baseball cap, and large sunglasses. Throughout the surveillance, the suspect keeps his head down and rarely raises his head enough to get a clear image of his face. As he proceeds across the campus, he is seen walking with an unusual gait. The suspect walks with very little bending in his right leg – consistent with a rifle being hidden in his pants. This unusual gait continues until the suspect is seen crossing the railing off the open walkway and onto the roof, where he leaves the camera's view.

A camera later captures the suspect as he runs across the roof to the suspected shooting position. Immediately after the shot was fired, a camera captures the suspect running across the roof carrying an item whose shape is consistent with a rifle. The suspect is then seen climbing down from the roof. He appears to drop the item he was carrying as he hits the ground in a controlled fall. He then picks up the item and runs toward the northeast end of campus.

Expanded Crime Scene Investigation.

Law enforcement officers followed the suspect's escape path to the northeast end of campus, where they believed the suspect left campus and entered a wooded area. In that wooded area, investigators found a bolt-action rifle wrapped in a towel. The rifle contained one spent round and three unspent rounds. This is consistent with the facts officers observed at the time of, and immediately after the shooting—no shell casings were found on the roof, suggesting a bolt-action rather than an auto-loading weapon, and only a single round was fired.

Each round in the rifle contained an etched inscription as follows:

Fired cartridge:	NoTices Bulge OWO What's This?
Second cartridge:	Hey Facist! Catch! [arrow symbols]
Third cartridge:	O Bella ciao, Bella ciao Bella ciao Ciao, ciao!
Fourth cartridge:	If you Read This, You Are GAY Lmao

The rifle, ammunition rounds, and towel were sent for forensic processing. DNA consistent with Robinson's was found on the trigger, other parts of the rifle, the fired cartridge casing, two of the three unfired cartridges, and the towel.

Law enforcement was unable to immediately locate the shooter, so they published photos of the shooter from the UVU surveillance cameras and asked for the public's help to identify him. Meanwhile, law enforcement continued to try to identify the shooter through other means.

The Washington County Investigation.

On the evening of September 11, 2025, as law enforcement continued their investigation, Tyler James Robinson, went to the Washington County Sheriff's Office with his parents and a family friend to turn himself in.

Robinson's mother stated the following to police. On September 11, 2025, the day after the shooting, Robinson's mother saw the photo of the shooter in the news and thought the shooter looked like her son. Robinson's mother called her son and asked him where he was. He said he was at home sick and that he had also been at home sick on September 10th. Robinson's mother expressed concern to her husband that the suspected shooter looked like Robinson. Robinson's father agreed.

Robinson's mother explained that over the last year or so, Robinson had become more political and had started to lean more to the left – becoming more pro-gay and trans-rights oriented. She stated that Robinson began to date his roommate, a biological male who was transitioning genders. This resulted in several discussions with family members, but especially between Robinson and his father, who have very different political views. In one conversation before the shooting, Robinson mentioned that Charlie Kirk would be holding an event at UVU, which Robinson said was a “stupid venue” for the event. Robinson accused Kirk of spreading hate.

Robinson's father reported that when his wife showed him the surveillance image of the suspected shooter in the news, he agreed that it looked like their son. He also believed that the rifle that police suspected the shooter used matched a rifle that was given to his son as a gift. As a result, Robinson's father contacted his son and asked him to send a photo of the rifle. Robinson did not respond. However, Robinson's father spoke on the phone with Robinson. Robinson implied that he planned to take his own life. Robinson's parents were able to convince him to meet at their home.

As they discussed the situation, Robinson implied that he was the shooter and stated that he couldn't go to jail and just wanted to end it. When asked why he did it, Robinson explained there is too much evil and the guy [Charlie Kirk] spreads too much hate. They talked about Robinson turning himself in and convinced Robinson to speak with a family friend who is a retired deputy sheriff. At Robinson's father's request, the family friend met with Robinson and his parents and convinced Robinson to turn himself in.

The family friend spoke to police and reported telling Robinson that it would be best if he brought all evidence with him to the sheriff's office to avoid police having to search his parent's home. The family friend also asked Robinson if he had any clothes that were related to what he did. Robinson replied that he had disposed of the clothes in different areas.

The Roommate.

Police interviewed Robinson's roommate, a biological male who was involved in a romantic relationship with Robinson. The roommate told police that the roommate received messages from Robinson about the shooting and provided those messages to police.

On September 10, 2025, the roommate received a text message from Robinson which said, “drop what you are doing, look under my keyboard.” The roommate looked under the keyboard and found a note that stated, “I had the opportunity to take out Charlie Kirk and I'm going to take it.” Police found a photograph of this note.

The following text exchange then took place.

After reading the note, the roommate responded, “What????????????? You’re joking, right????”

Robinson: I am still ok my love, but am stuck in orem for a little while longer yet. Shouldn’t be long until I can come home, but I gotta grab my rifle still. To be honest I had hoped to keep this secret till I died of old age. I am sorry to involve you.

Roommate: you weren’t the one who did it right????

Robinson: I am, I’m sorry

Roommate: I thought they caught the person?

Robinson: no, they grabbed some crazy old dude, then interrogated someone in similar clothing. I had planned to grab my rifle from my drop point shortly after, but most of that side of town got locked down. Its quiet, almost enough to get out, but theres one vehicle lingering.

Roommate: Why?

Robinson: Why did I do it?

Roommate: Yeah

Robinson: I had enough of his hatred. Some hate can’t be negotiated out. If I am able to grab my rifle unseen, I will have left no evidence. Going to attempt to retrieve it again, hopefully they have moved on. I haven’t seen anything about them finding it.

...

Roommate: How long have you been planning this?

Robinson: a bit over a week I believe. I can get close to it but there is a squad car parked right by it. I think they already swept that spot, but I don’t wanna chance it

...

Robinson: I’m wishing I had circled back and grabbed it as soon as I got to my vehicle. ... I’m worried what my old man would do if I didn’t bring back grandpas rifle ... idek if it had a serial number, but it wouldn’t trace to me. I worry about prints I had to leave it in a bush where I changed outfits. didn’t have the ability or time to bring it with. ... I might have to abandon it and hope they don’t find prints. how the fuck will I explain losing it to my old man. ...

only thing I left was the rifle wrapped in a towel. ...

remember how I was engraving bullets? The fuckin messages are mostly a big meme, if I see “notices bulge uwu” on fox new I might have a stroke alright im gonna have to leave it, that really fucking sucks. ...

judging from today I'd say grandpas gun does just fine idk. I think that was a \$2k scope ;-;

...

Robinson: delete this exchange

Robinson: my dad wants photos of the rifle ... he says grandpa wants to know who has what, the feds released a photo of the rifle, and it is very unique. Hes calling me rn, not answering.

...

Robinson: since trump got into office [my dad] has been pretty diehard maga.

...

Robinson: Im gonna turn myself in willingly, one of my neighbors here is a deputy for the sheriff.

Robinson: you are all I worry about love

Roommate: I'm much more worried about you

Robinson: don't talk to the media please. don't take any interviews or make any comments. ... if any police ask you questions ask for a lawyer and stay silent

The Search of Robinson's Residence.

Police executed a search warrant on Robinson's residence. During that search, police discovered a shell casing with etchings like the etchings found on the shells in the rifle near UVU. Police also found several targets with bullet holes in Robinson's home.

Count 1: Aggravated Murder pertains to Robinson's shooting and killing of Charlie Kirk in a manner that exposed others, in addition to Mr. Kirk, to a great risk of death.

Count 2 Felony Discharge of a Firearm pertains to Robinson's shooting toward Mr. Kirk, knowing that doing so would endanger those in the bullet's path. The shot caused serious bodily injury to Mr. Kirk, ultimately resulting in his death.

Count 3: Obstructing Justice pertains to Robinson's removal and hiding of the rifle he used to shoot Mr. Kirk.

Count 4: Obstructing Justice pertains to Robinson's removal and hiding of the clothing he wore when he shot Mr. Kirk.

Count 5: Witness Tampering pertains to Robinson's statement to his roommate telling his roommate to delete their text exchange that followed the shooting.

Count 6: Witness Tampering pertains to Robinson's statement to his roommate telling the roommate, "if any police ask you questions ask for a lawyer and stay silent."

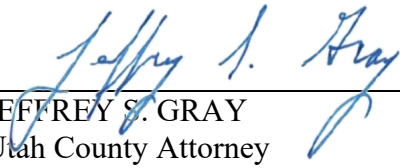
Count 7: Violence Offense Committed in the Presence of a Child pertains to Robinson's shooting of Mr. Kirk in the presence of children under the age of 14 who were visible at the event.

Based upon evidence received from Brian Davis of the Utah State Bureau of Investigations, I have reason to believe the defendant committed the offense(s) as charged herein.

Authorized for presentment and filing on September 16, 2025.

UTAH COUNTY ATTORNEY'S OFFICE

Sworn to by:



JEFFREY S. GRAY
Utah County Attorney

Addendum C

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CHAD E. GRUNANDER # 9968
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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

STATE'S NOTICE OF INTENT
TO SEEK THE DEATH PENALTY

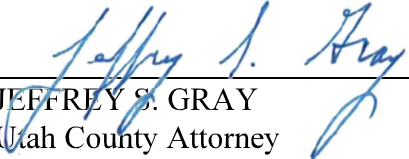
Case No. 251403576

Judge Tony F. Graf, Jr.

The State of Utah, by and through its counsel, Jeffrey S. Gray, Utah County Attorney, and pursuant to Utah Code Ann. § 76-5-202(3) (2022), hereby gives notice of its intent to seek the death penalty for Count 1, Aggravated Murder, as charged in the Information. The decision to seek the death penalty is based on the available evidence and circumstances and nature of the crime.

Submitted this 16th day of September 2025.

UTAH COUNTY ATTORNEY'S OFFICE



JEFFREY S. GRAY
Utah County Attorney

CERTIFICATE OF DELIVERY

I hereby certify that I caused the State's Notice of Intent to Seek the Death Penalty to be filed on September 16, 2025, through the Court's e-filing system with a copy thereof to Defendant's duly appointed or retained counsel, as determined at his first appearance.

UTAH COUNTY ATTORNEY'S OFFICE

/s/ Jeffrey S. Gray

Addendum D

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IN THE FOURTH JUDICIAL DISTRICT COURT - PROVO

IN AND FOR UTAH COUNTY, STATE OF UTAH

_____	)	
STATE OF UTAH,	)	Case No. 251403576
	)	
Plaintiff,	)	
	)	
v.	)	TRANSCRIPT OF:
	)	RULING
TYLER JAMES ROBINSON,	)	
	)	
Defendant.	)	
_____	)	

BEFORE THE HONORABLE TONY GRAF

HEARING HELD VIA WEBEX

OCTOBER 27, 2025

Court Reporter: Phoebe S. Moorhead, RDR, CRR, UT CSR
Certified Court Reporter for the State of Utah

A P P E A R A N C E S

ALL APPEARANCES VIA WEBEX

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Ryan McBride
David Sturgill
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Benjamin C. Van Noy
UTAH COUNTY ATTORNEY'S OFFICE
100 East Center Street
Suite 2100
Provo, UT 84606

-ooOoo-

1 October 27, 2025

2 P R O C E E D I N G S

3 THE COURT: Good afternoon. Court is now in session.
4 Calling Case 251403576, State of Utah vs. Tyler James Robinson.

5 Will the parties please enter their appearances?

6 MR. BALLARD: Your Honor, Christopher Ballard and
7 Chad Grunander on behalf of the state.

8 MS. NESTER: Your Honor, Kathy Nester, Richard Novak,
9 and Staci Visser on behalf of Mr. Robinson.

10 THE COURT: Thank you. Welcome to both the
11 prosecution and defense. And Mr. Robinson I understand is
12 appearing by WebEx.

13 Mr. Robinson, can you hear us?

14 THE DEFENDANT: Yes, I can.

15 THE COURT: Thank you. Good afternoon to you all.

16 We're here on the Tyler James Robinson motion to
17 appear in civilian clothing and without physical restraints at
18 all pretrial hearings. Because of some of the arguments
19 involved in court security protocols, the Court held a closed
20 hearing on October 24th, 2025.

21 During that hearing, the parties addressed several
22 related matters. The first, Mr. Robinson's motion to strike
23 the sheriff's response; the second, Mr. Robinson's motion to
24 appear in civilian clothing and without physical restraints;
25 the third, the sheriff's and Mr. Robinson's requests to limit

1 or exclude visual recording and photography in the courtroom;
2 and finally, the fourth matter, the state's request to have all
3 non-evidentiary hearings held remotely.

4 The parties have stipulated that the state's request
5 to hold non-evidentiary hearings virtually as well as the
6 parties' joint request to limit electronic media coverage both
7 require further briefing. Those issues are not yet ready for
8 the Court's decision.

9 To facilitate that briefing, the Court directs as
10 follows. If the state wishes to have all non-evidentiary
11 hearings conducted via WebEx, it must file a separate motion.
12 The Court will not rely on prior briefing. The standard
13 timelines for response and reply apply, and the parties must
14 file a request to submit and request a hearing if desired.

15 If the parties seek to limit or restrict electronic
16 media coverage, they may file a joint motion. Again, the Court
17 will not rely on prior briefing. That motion must address the
18 factors set forth in Rule 4-401.01(2) of the Utah Rules of
19 Judicial Administration. Standard response and reply times
20 apply, and the parties must file a request to submit once the
21 matter is ripe for decision.

22 The Court undertook advisement -- took under
23 advisement two issues: the motion to strike and the motion to
24 appear in civilian clothing and without restraints. The Court
25 now issues its ruling.

1 In regards to the motion to strike the sheriff's
2 response, the prosecution and the sheriff's department filed a
3 joint opposition to the defendant's motion to appear in
4 civilian clothing and without restraints. Mr. Robinson moved
5 to strike the sheriff's portion of that filing, arguing it was
6 procedurally improper because the sheriff is not a party.

7 At the hearing, all agreed that the sheriff's
8 department is not a party in this case. The state and the
9 sheriff's office nevertheless argued that the sheriff may file
10 memoranda as a nonparty. Mr. Robinson disagreed, but did not
11 object to the Court considering the sheriff's position on
12 security.

13 The Court finds that the sheriff's department is not
14 a party to this case; and, therefore, its joint filing with the
15 prosecution was procedurally improper. Accordingly,
16 Defendant's motion to strike the sheriff's response is granted.

17 However, under Rule 3-414 of the Utah Rules of
18 Judicial Administration, the Court is required to coordinate
19 courtroom security with the sheriff's department. Consistent
20 with that rule and with the defendant's agreement, the Court
21 has considered the substance of the state's opposition and the
22 memorandum prepared by the court security director that was
23 attached to it. Going forward, if either party has a security
24 concern specific to this case, they may present evidence from
25 the sheriff's department by affidavit, declaration, exhibit, or

1 testimony. This order does not limit the sheriff's
2 department's ability to coordinate with the Court or otherwise
3 act as authorized by law.

4 Turning to the motion to appear in civilian clothing
5 and without physical restraints. The parties agree that during
6 trial, a defendant has a right to appear in civilian clothing
7 and that any restraints must be concealed from the jury.

8 Mr. Robinson now seeks to extend those rights to all pretrial
9 proceedings. The Court considered each request separately.

10 In relation to requests to appear in civilian
11 clothing, Mr. Robinson asks to appear in civilian clothing at
12 all pretrial hearings. He argues that the extensive media
13 coverage of this case creates a real risk of prejudice if the
14 public and potential jurors repeatedly see him in jail attire.

15 The state, the sheriff's department, and the court
16 security director opposed the request, arguing that jail
17 clothing assists with safety and identification. The Court has
18 balanced these competing concerns. The case has attracted
19 extraordinary public and media attention. Images of
20 Mr. Robinson in jail clothing are likely to circulate widely
21 and influence prospective jurors. Given the scale of that
22 publicity, the risk of prejudice is significant.

23 However, Mr. Robinson's -- let me see here. As
24 previously stated, Mr. Robinson sits before this Court presumed
25 innocent, and that presumption remains unless and until each

1 element of every offense charged against him is proved beyond a
2 reasonable doubt. To date, this has not occurred, and the
3 presumption of innocence remains.

4 Balancing these factors, the Court finds that
5 Mr. Robinson's right to the presumption of innocence outweighs
6 the minimal inconvenience of permitting civilian attire, and
7 Mr. Robinson shall be dressed as one who is presumed innocent.
8 Accordingly, the defendant's request to appear in civilian
9 clothing for all pretrial proceedings is granted.

10 Defense counsel is directed to coordinate with the
11 jail to ensure that this order is implemented. And the Court
12 further orders that the clothing be provided 72 hours prior to
13 any hearing.

14 To the second request, requests to appear without
15 physical restraints, Mr. Robinson also requests to appear
16 unrestrained during pretrial proceedings. He argues that
17 visible restraints would prejudice potential jurors, undermine
18 his dignity, and interfere with his ability to communicate with
19 counsel.

20 Rule 3-414(9)(c) of the Utah Rules of Judicial
21 Administration requires that all in-custody defendants be
22 restrained unless otherwise ordered by the Court. The Court
23 recognizes that Mr. Robinson has no criminal history and no
24 record of misconduct while in custody. However, the charges he
25 faces are extraordinarily serious, carrying potential penalties

1 of life imprisonment or death. The safety of Mr. Robinson, the
2 attorneys, court staff, and the public must remain the Court's
3 highest priority. The emotional nature of these proceedings
4 also raise the risk of disruption. Given these factors, the
5 defendant's request to appear without restraints is denied.

6 The Court directs the sheriff's department to conduct
7 an individualized assessment and use the least restrictive
8 restraints necessary to maintain safety. If those restraints
9 impede the defendant's ability to communicate with counsel or
10 take notes, counsel may renew the motion.

11 I wish now to also address the decorum and media
12 restrictions to mitigate any potential prejudice. The Court
13 will amend its standing decorum order. The media will be
14 prohibited from photographing or visually recording
15 Mr. Robinson's restraints and from photographing or recording
16 him while entering, exiting, or standing in the courtroom. In
17 making this amendment, the Court has considered the factors in
18 Rule 4-401.01(2). This is a high-profile case with strong
19 public interest. Restricting the recording of restraints
20 strikes the proper balance between Mr. Robinson's right to a
21 fair proceeding and the public's right to access and
22 transparency.

23 In conclusion, the Court orders as follows.
24 Defendant's motion to strike the sheriff's response is granted.
25 Defendant's motion to appear in civilian clothing is granted.

1 Defendant's motion to appear without restraints is denied. The
2 standing decorum order will be amended to prohibit any visual
3 recording or photography of the defendant's restraints or of
4 the defendant entering or exiting the courtroom.

5 This constitutes the order of the Court and a written
6 order and ruling will be published shortly. Both defense and
7 prosecution have stipulated to vacate the October 30th hearing.
8 Additional time is needed to complete discovery and to file
9 motions addressing whether non-evidentiary hearings should be
10 conducted virtually, whether to impose any blanket restrictions
11 on cameras in the courtroom, and any other motions that may
12 arise.

13 This matter is set to return before the Court on
14 January 16th, 2026, at 1:00 p.m., and again on January 30th,
15 2026, at 1:00 p.m. Both hearings will be heard and held in
16 person with Mr. Robinson present to address these issues.

17 And that concludes the order of this Court. Counsel,
18 thank you for being here. Mr. Robinson, we'll see you on
19 January 16th and January 30th at 1:00 p.m. Court is now in
20 recess.

21 (Proceedings concluded at 1:12 p.m.)
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That the foregoing proceedings were taken before me at the time and place set forth herein and were taken down by me in shorthand and thereafter transcribed into typewriting under my direction and supervision;

I FURTHER CERTIFY that I am neither counsel for nor related to any party to said action nor in anywise interested in the outcome thereof.

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1	arguments [1] - 3:18 arise [1] - 9:12 assessment [1] - 8:7 assists [1] - 6:17 attached [1] - 5:23 attention [1] - 6:19 attire [2] - 6:14, 7:6 attorneys [1] - 8:2 attracted [1] - 6:18 authorized [1] - 6:3	coordinate [3] - 5:18, 6:2, 7:10 counsel [5] - 7:10, 7:19, 8:9, 8:10, 9:17 COURT [3] - 3:3, 3:10, 3:15 court [6] - 3:3, 3:19, 5:22, 6:15, 8:2, 9:19 Court [25] - 3:19, 4:9, 4:12, 4:16, 4:22, 4:24, 5:11, 5:13, 5:18, 5:20, 6:2, 6:9, 6:17, 6:24, 7:4, 7:11, 7:22, 8:6, 8:12, 8:17, 8:23, 9:5, 9:13, 9:17 Court's [2] - 4:8, 8:2 courtroom [5] - 4:1, 5:19, 8:16, 9:4, 9:11 coverage [3] - 4:6, 4:16, 6:13 creates [1] - 6:13 criminal [1] - 7:23 custody [2] - 7:21, 7:24	enter [1] - 3:5 entering [2] - 8:16, 9:4 evidence [1] - 5:24 evidentiary [4] - 4:3, 4:5, 4:10, 9:9 exclude [1] - 4:1 exhibit [1] - 5:25 exiting [2] - 8:16, 9:4 extend [1] - 6:8 extensive [1] - 6:12 extraordinarily [1] - 7:25 extraordinary [1] - 6:19
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Addendum E

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IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT

IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	DEFENDANT'S MOTION TO APPEAR AT ALL IN-PERSON PROCEEDINGS IN CIVILIAN CLOTHING AND WITHOUT RESTRAINTS and MEMORANDUM IN SUPPORT Case No. 251403576 Honorable Tony F. Graf, Jr.
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Defendant, Tyler James Robinson, by and through undersigned counsel hereby moves the Court for an order permitting Mr. Robinson to appear at all proceedings in civilian clothing and without physical restraints. As articulated herein, this motion is grounded in Mr. Robinson's rights to a fair trial, to Due Process of law, the presumption of innocence, and to a reliable

penalty determination under State and Federal constitutional provisions, including the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution and to article I, sections 7 and 12 of the Utah Constitution.

REQUESTED RELIEF TO DETERMINE MOTION

Prior to the determination of the Motion, the Court should order the following:

1. An order compelling the Utah County Sheriff Department to disclose any and all files, records, correspondence, and reports created by or in the possession of the Department relating to Defendant's motion.
2. A temporary order allowing Mr. Robinson to appear in civilian clothing and without visible restraints at any in-person, public hearing held prior to the determination of this motion.
3. A closed hearing for the Court to receive evidence regarding the need for physical restraints in this particular case and the opportunity to further brief this issue.

MEMORANDUM

Mr. Robinson makes two requests: (1) to allow him to appear at all proceedings in civilian attire; and (2) to be without physical restraints during all in-person hearings—both pretrial and trial. These requests are necessary to maintain the presumption of innocence, to protect Mr. Robinson's rights to a fair and impartial trial, and to maintain courtroom decorum and dignity.

Recognizing that the Court must make an individualized assessment of a purported need for physical restraints, Mr. Robinson asks the Court for an order directing the Utah County Sheriff's Department to disclose relevant records and for the opportunity to supplement this motion after an evidentiary hearing on the issue of physical restraints. To avoid the very prejudice this motion seeks to prevent, Mr. Robinson requests a temporary order from the Court allowing Mr. Robinson to appear at any pretrial proceedings in civilian clothing and without visible restraint while this

motion is pending, and a further order granting a closed hearing at which the Court can take evidence regarding the need for physical restraints in this particular case.¹

I. The Law of Courtroom Restraints.

The presumption of innocence lies at the heart of our system of criminal justice. *See Estelle v. Williams*, 425 U.S. 501, 503 (1976). In a series of cases, the Supreme Court has held that constitutional principles of due process and non-constitutional principles of fair administration of justice require courts not to impose excessive physical restraints on the accused, who is still presumed innocent.

In *Illinois v. Allen*, the Supreme Court wrote that an accused could be tried while shackled and gagged, or even removed from the courtroom altogether, but only as last resorts based on the accused's repeated and aggravated refusals to behave in court. 397 U.S. 337, 344 (1970). Defendant Allen earned such rare treatment in his jury trial by repeatedly disrupting the proceedings to the extent that an orderly trial was impossible if he was present and able to speak and interrupt. *Id.* at 346-47.

In *Holbrook v. Flynn*, the Court found acceptable the presence of uniformed police in the front row of the courtroom, finding that security measure was not an “inherently prejudicial” practice, like shackling, that “should be permitted only where justified by an essential state interest specific to each trial.” 475 U.S. 560, 568–69 (1986),

In *Deck v. Missouri*, the Supreme Court made clear that during the guilt phase of a criminal trial, the due process clauses of the Fifth and Fourteenth Amendments forbid routine use of visible shackles. 544 U.S. 622, 626-29 (2005), *abrogated on other grounds by Fry v. Pliler*, 551 U.S. 112

¹ Such a temporary order has precedence. A similar request was granted in another recent, highly publicized death penalty case in Ada County, Idaho while the underlying motion was litigated. *See* Exhibit A (Order Temporarily Granting Defendant’s Motion to Wear Street Clothing).

(2007). Drawing on English sources older than the United States, *Deck* identified the traditional common law rule that defendants “must be brought to the bar without irons, or any manner of shackles or bonds; unless there be evident danger of an escape.” *Id.* at 626 (quoting 4 W. Blackstone, Commentaries on the Laws of England 317 (1769)). Only in “extreme and exceptional cases, where the safe custody of the prisoner and the peace of the tribunal imperatively demand, the manacles may be retained.” *Id.* at 626–27 (quoting 1 J. Bishop, New Criminal Procedure § 955, p. 573 (4th Ed. 1895)). *Deck* then extended the constitutional limits on shackles to the sentencing phase of capital cases, although the defendant is no longer presumed innocent. *Id.* at 633.²

In *Deck*, the Supreme Court explained that “[j]udicial hostility to shackling” effectuates “three fundamental legal principles: (1) preserving the presumption of innocence to which every criminal defendant is entitled; (2) ensuring that the defendant is able to participate meaningfully in his or her defense; and (3) maintaining the dignity of the judicial process. *Id.* at 630–31.

While neither the Supreme Court nor any Utah appellate court have yet addressed the issue in a post-*Deck* case, it has been held that the right to be free from unwarranted courtroom restraints “applies whether the proceeding is pretrial, trial, or sentencing, with a jury or without.” *United States v. Sanchez-Gomez*, 859 F.3d 649, 661 (9th Cir. 2017) (en banc), *vacated on other grounds*,

² The Utah Supreme Court reached a contrary result in the pre-*Deck* case of *State v. Young*, 853 P.2d 327 (Utah 1993). However, even then the *Young* court cautioned: “By holding that shackling at the penalty phase does not inherently violate the due process rights of a defendant, we do not hold that shackling is necessary or appropriate in all capital sentencing proceedings. The mere fact that a jury convicted a defendant of first degree murder is not a sufficient basis for a decision to shackle him during the penalty phase. The trial court should look at the particular facts of the case and the conduct of the proceedings and should balance the need for safety and security in the courtroom against the potential for prejudice.” *Id.* at 350–51. The holding in *Young* does not survive *Deck*.

584 U.S. 381 (2018). The right “respects our foundational principle that defendants are innocent until proven guilty” and is implicated by “the perception of any person who may walk into a public courtroom, as well as those of the jury, the judge and court personnel. A presumptively innocent defendant has the right to be treated with respect and dignity in a public courtroom, not like a bear on a chain.” *Id.*

Numerous courts agree. *See, e.g., United States v. Williams* 736 F.Supp.3d 400, 406–07 (W.D. Va. 2024) (“after carefully reviewing this case law, this court would be remiss if it didn’t state its firm conviction that a broader, qualified right of a criminal defendant to be unshackled exists and should be recognized at non-jury proceedings”) (citing *Sanchez-Gomez*); *State v. Luthi* 549 P.3d 712, 713–14 (Wash. 2024) (“the due process right to appear without unjustified restraints applies to every court appearance, including nonjury pretrial hearings.” (internal quotation omitted)); *People v. Best*, 979 N.E.2d 1187, 1189 (N.Y. 2012) (“The routine and unexplained use of visible restraints does violence to each of [the three fundamental legal principles recognized in *Deck*], essential pillars of a fair and civilized criminal justice system that are no less implicated when the factfinder is the trial judge rather than a jury.”); *In re R.W.S.*, 2007 ND 37, ¶ 15, 728 N.W.2d 326 (agreeing with cases finding that “juveniles have the same rights as adult defendants to be free from physical restraints”) (collecting cases); *People v. Allen*, 856 N.E.2d 349, 353 (Ill. 2006) (“even when there is no jury, any unnecessary restraint is impermissible because it hinders the defendant’s ability to assist his counsel, runs afoul of the presumption of innocence, and demeans both the defendant and the proceedings.”); *People v. Fierro*, 821 P.2d 1302, 1322 (Cal. 1991) (“restrictions on the use of physical restraints at trial should apply at a preliminary hearing” because “the policies which underlie such restrictions have application to other proceedings as

well.”); *State v. Doe*, 333 P.3d 858, 870-71 (Idaho Ct. App. 2014) (due process requires that juveniles be afforded the same rights as adults to be free from physical restraints at trial.)

These cases and many others demonstrate two critical points. First, decisions about extraordinary restraints are decisions for the judge and cannot be delegated to security or correctional personnel. Second, the reasons for the limits on such extraordinary restraints apply to criminal hearings broadly; those reasons are not limited to only what a jury might see.

A. No Delegation of the Judicial Responsibility

One central theme of the law of courtroom restraints is that the trial judge is the person responsible for making the decisions. The judge cannot simply delegate that responsibility to the Sheriff’s Department or other correctional or security staff.

The Utah Supreme Court has made this point by holding in *Chess v. Smith*, that a trial judge has the responsibility to inquire as to why a defendant is appearing in court in prison clothes, even in the absence of defense objection. 617 P.2d 341, 345 (Utah 1980). *See also State v. Bennett*, 2000 UT 34, ¶ 7, 999 P.2d 1 (“Absent such an inquiry and a reasoned determination that such an appearance is necessary, automatic reversal is the consequence.”); *Young*, 853 P.2d at 350–51 (“The trial court should look at the particular facts of the case and the conduct of the proceedings and should balance the need for safety and security in the courtroom against the potential for prejudice.”).

The federal courts have more explicitly held that a trial court cannot delegate decision-making on the issue of physical restraints or courtroom attire to a third party. *See, e.g., Sanchez-Gomez*, 859 F.3d at 661 (“Courts cannot delegate this constitutional question to those who provide security, such as the U.S. Marshals Service.”); *United States v. Wardell*, 591 F.3d 1279, 1294–95 (10th Cir. 2009) (collecting cases and emphasizing that trial court has “legal duty to make a

thorough and independent determination” of need for device); *Lopez v. Thurmer*, 573 F.3d 484, 493 n.2 (7th Cir. 2009) (“although a trial court's decisions about the required level of security during a trial are entitled to deference, those decisions must be made by the court itself; the trial judge may not delegate his discretion to another party”) (internal quotation omitted); *United States v. Miller*, 531 F.3d 340, 345 (6th Cir. 2008) (trial judge abused discretion by deferring without explanation to marshal's recommendation that defendant wear stun-belt in jury trial) (“a district court's blind adherence to a corrections officer's recommendation, without making any individualized determinations or specific findings, amounts to an abuse of discretion”); *Gonzalez v. Piller*, 341 F.3d 897, 902 (9th Cir. 2003) (“The use of physical restraints is subject to close *judicial*, not law enforcement, scrutiny.” (emphasis in original)); *United States v. Durham*, 287 F.3d 1297, 1304 (11th Cir. 2002) (same).

This need for a decision by the judge runs through the Supreme Court's decisions on courtroom restraints, as well. *See Allen*, 397 U.S. at 343 (judge “must be given sufficient discretion to meet the circumstances of each case. No one formula for maintaining the appropriate courtroom atmosphere will be best in all situations.”); *Deck*, 544 U.S. at 629, (Fifth and Fourteenth Amendment prohibit use of physical restraints visible to the jury “absent a trial court determination, in the exercise of its discretion, that they are justified by a state interest specific to a particular trial”).

B. It's Not Just About the Jury.

The use of courtroom restraints has been litigated most often when the restraints are used during jury trials. That's where the dangers of unfair prejudice are most severe, and where, if any restraints are to be used, the usual course is to ensure they are never visible to the jury. Yet the

reasons for the limits on courtroom restraints apply more broadly. They weigh in favor of applying those limits to pretrial proceedings. The Court laid out these reasons in *Deck v. Missouri*.

First, of course, the criminal justice system presumes the defendant is innocent unless and until proved guilty. *Deck*, 544 U.S. at 630. “Visible shackling undermines the presumption of innocence and the related fairness of the factfinding process.” *Id.* By necessity, judges are trusted to be less vulnerable than lay jurors to this and other forms of unfair prejudice. However, the psychological reality is that the human beings who serve on the bench are likewise not immune to such subconscious and subliminal influence from seeing a human being in chains to protect others from him. *See, e.g., People v. Hamlett*, 193 N.Y.S.3d 658, 663 (N.Y. 2023) (“It cannot merely be assumed that judges are immune from the prejudice and bias caused by visible shackles. We judges are human, and the sight of a defendant in restraints may unconsciously influence even a judicial factfinder.”).

Second, *Deck* invoked the right to counsel because full shackles can interfere with the accused's ability to communicate with his lawyer. 544 U.S. at 631 (quoting *Allen*, 397 U.S. at 344). Courts have long expressed concerns that shackles can be heavy and painful, distracting the accused from focusing on his defense. *E.g., Durham*, 287 F.3d at 1304 (restraints “may confuse the defendant, impair his ability to confer with counsel, and significantly affect the trial strategy he chooses to follow”); *People v. Harrington*, 42 Cal. 165, 168 (1871), quoted in *Deck*, 544 U.S. at 631. These forms of interference do not depend on whether a jury is present or even on whether the shackles are visible.

Third, and most important here, “judges must seek to maintain a judicial process that is a dignified process.” *Deck*, 544 U.S. at 631. The *Deck* Court continued:

The courtroom's formal dignity, which includes the respectful treatment of defendants, reflects the importance of the matter at issue, guilt or innocence, and

the gravity with which Americans consider any deprivation of an individual's liberty through criminal punishment. And it reflects a seriousness of purpose that helps to explain the judicial system's power to inspire the confidence and to affect the behavior of a general public whose demands for justice our courts seek to serve.

Id. This dignity is for the good of the institution and the public.

In *Allen*, the Supreme Court acknowledged that the use of shackles and gags in court “is itself something of an affront to the very dignity and decorum of judicial proceedings that the judge is seeking to uphold.” 397 U.S. at 344. Indeed, “[a] presumptively innocent defendant has the right to be treated with respect and dignity in a public courtroom, not like a bear on a chain.” *Sanchez-Gomez*, 859 F.3d at 661. “We must not exaggerate the distance between ‘us,’ the lawful ones, the respectable ones, and the prison and jail population; for such exaggeration will make it too easy for us to deny that population the rudiments of humane consideration.” *Johnson v. Phelan*, 69 F.3d 144, 152 (7th Cir. 1995) (Posner, C.J., dissenting).

Such routine treatment is unfair to the defendant, and it diminishes the courts:

Courtrooms are palaces of justice, imbued with a majesty that reflects the gravity of proceedings designed to deprive a person of liberty or even life. A member of the public who wanders into a criminal courtroom must immediately perceive that it is a place where justice is administered with due regard to individuals whom the law presumes to be innocent. That perception cannot prevail if defendants are marched in like convicts on a chain gang. Both the defendant and the public have the right to a dignified, inspiring and open court process. Thus, innocent defendants may not be shackled at any point in the courtroom unless there is an individualized showing of need.

Sanchez-Gomez, 859 F.3d at 662. The Ninth Circuit went on to emphasize that these institutional concerns are present whether the hearing is before a jury or a judge:

We must take seriously how we treat individuals who come into contact with our criminal justice system—from how our police interact with them on the street to how they appear in the courtroom. How the justice system treats people in these public settings matters for the public's perception, including that of the defendant. Practices like routine shackling and “perp walks” are inconsistent with our constitutional presumption that people who have not been convicted of a crime are innocent until proven otherwise. That's why we must

examine these practices more skeptically than those deployed in an institutional setting . . . We must treat people with respect and dignity even though they are suspected of a crime.

Id. at 665 (internal citations omitted). The Utah Supreme Court made essentially the same point in condemning trials of the accused in prison garb:

It would seem that the occurrence of a defendant, armed with a presumption of innocence, standing trial before a jury in prison clothes should long ago have ceased. A decent respect for basic fairness and the indignity of appearing in a court of law in clothes which mark a defendant, who has not been convicted, as a lawbreaker would suggest as much.

Chess, 617 P.2d at 345.

C. The Factors To Be Considered and The Need For A Hearing.

Because of the inherently prejudicial impact of appearing shackled before the jury, courtroom shackling is permitted only “as a last resort.” *See Allen*, 397 U.S. at 344(“[N]o person should be tried while shackled and gagged except as a last resort.”); *Holbrook*, 475 U.S. at 568–69 (“[S]hackling[] should be permitted only where justified by an essential state interest specific to each trial.”). Reviewing courts require a showing of necessity before tolerating a trial court's decision to shackle. *See, e.g., United States v. Brantley*, 342 F. App'x 762, 770 (3d Cir. 2009) (“[Shackling] is an extreme measure, that the Supreme Court considers ‘a last resort.’ Any court considering such an extreme measure must first establish that it is actually necessary, not simply a matter of practice or convenience. And in making such a determination, a district judge must scrupulously ‘make a case specific and individualized assessment’ that supports his decision to shackle a defendant and provides a reviewing court with an adequate record.”).³ Thus, “a trial judge may ... impose restraints only when ‘confronted with disruptive, contumacious, [and]

³ *Spain v. Rushen*, 883 F.2d 712, 728 (9th Cir.1989) (same) cert. denied, 495 U.S. 910 (1990); *Elledge v. Dugger*, 823 F.2d 1439, 1452 (11th Cir.1987) (same) cert. denied, 485 U.S. 1014 (1988); *Tyars v. Finner*, 709 F.2d 1274, 1284–85 (9th Cir.1983) (same); *People v. Duran*, 545 P.2d 1322, 1327 (Cal. 1976) (same); *Bello v. State*, 547 So.2d 914, 918 (Fla.1989) (same).

stubbornly defiant defendants” and shackling “must be limited to cases urgently demanding that action.” *Tyars*, 709 F.2d at 1284 (quoting *Allen*, 397 U.S. at 343). *See also State v. Mitchell*, 824 P.2d 469, 473 (Utah Ct. App. 1991) (“An accused may be physically restrained if needed to prevent an escape, resort to violence, or disruption of the trial.”).

Furthermore, before a court may shackle a disruptive defendant, it must first “pursue less restrictive alternatives.” *Spain*, 883 F.2d at 721; *see also Tyars*, 709 F.2d at 1284. Lesser restraints may include increasing courtroom security personnel, warning the defendant of the consequences of disruptive behavior, such as the possibility of contempt or removal. *See Spain*, 883 F.2d at 726.

Under decided case law, a defendant is also entitled to an adequate opportunity to challenge untested information that serves as the basis for courtroom restraints and to address all other factors relevant to a decision to impose restraints. *See United States v. Durham*, 287 F.3d 1297, 1307 (11th Cir. 2002) (conviction vacated because in deciding that restraints were necessary, the trial court denied the defendant’s request for an evidentiary hearing and “did not make any findings on critical factual matters”); *Zygadlo v. Wainwright*, 720 F.2d 1221, 1223–24 (11th Cir. 1983) (due process may require an evidentiary hearing if the factual basis for security procedures was in dispute); *State v. Moen*, 491 P.2d 858, 860–61 (Idaho 1971) (defendant should be afforded a reasonable opportunity to meet the information); *State v. Tolley*, 226 S.E.2d 553, 368 (S.C. 1976) (evidentiary hearing is required).

II. The Law Prohibiting Court Appearances in Jail or Prison Clothing.

Although the right to appear free from unjustified restraint arises most often in shackling cases, federal and state courts recognize that other courtroom practices implicate due process as well. For example, the Supreme Court has held that “compelling [a defendant] to wear jail clothing” violates due process because it “furthers no essential state policy” and creates “an

unacceptable risk ... of impermissible factors coming into play.” *Estelle*, 425 U.S. at 505; *see also State v. Daniels*, 2002 UT 2, ¶ 21, 40 P.3d 611 (“Compelling an accused to wear identifiable prison clothing at a jury trial, absent exceptional circumstances, has been held to be inherently prejudicial.”); *United States v. Portillo-Quezada*, 469 F.3d 1345, 1350 (10th Cir. 2006) (“defendants who are compelled to appear before the jury in handcuffs, shackles or prison attire suffer prejudice which unconstitutionally undermines the presumption of innocence.”), quoted in *United States v. Folse* (D.N.M., Jan. 18, 2019, No. CR 15-2485 JB) 2019 WL 266745, at *5 (“As the Court sees little argument against Folse wearing civilian clothing [at sentencing], the Court will permit him to dress in such articles.”).

As with the rule forbidding unnecessary shackling, the rationale of forbidding the defendant’s court appearance in civilian clothing extends beyond its effect on potential jurors. As the Colorado Supreme Court found in the very first case in this country prohibiting trial in jail or prison clothing, “the mind of a prisoner would be as much disturbed and his mental faculties as much confused and embarrassed by carrying on his person such brand of incarceration” as “requiring a prisoner to wear the word ‘County Jail’ branded upon his clothing[.]” *Eaddy v. People*, 174 P.2d 717, 718 (Co. 1946). The *Eaddy* Court further stated that requiring either shackles or jail garb,

. . . is a mockery, an indignity and a humiliation not consonant with innocence and freedom. The presumption of innocence requires the garb of innocence, and regardless of the ultimate outcome, or the evidence awaiting presentation, every defendant is entitled to be brought before the court with the appearance, dignity, and self-respect of a free and innocent man, except as the necessary safeguard and decorum of the court may otherwise require

Id. at 718-19.

Similarly, the Utah Court of Appeals has held in order to protect the presumption of innocence—a “basic component of a fair trial”—criminal defendants are entitled to the indicia of

innocence. *Mitchell*, 824 P.2d at 473 (quoting *Estelle*, 425 U.S. at 503). Indicia of innocence include the right of a criminal defendant to be tried wearing civilian clothing rather than clothing identifiable as prison or jail attire. *See id.* As reasoned by the Utah Supreme Court,

The prejudicial effect that flows from a defendant's appearing before a jury in identifiable prison garb is not measurable, and it is so potentially prejudicial as to create a substantial risk of fundamental unfairness in a criminal trial.

Chess, 617 P.2d at 344 (Utah 1980).

And unlike other indicia of guilt, i.e. physical restraints, the Supreme Court and the Utah Court of Appeals have recognized that “compelling an accused to wear jail clothing furthers no essential state policy[.]” *Mitchell*, 824 P.2d at 473. *See also Estelle*, 425 U.S. at 505 (“[C]ompelling an accused to wear jail clothing furthers no essential state policy.”); *Hernandez v. Beto*, 443 F.2d 634, 636-37 (5th Cir. 1971) (“The wearing of prison garb certainly could have little or nothing to do with security precautions in this case.”).

III. The Application of The Law to This Case.

A. Mr. Robinson Should Be Permitted to Don the Indicia of Innocence.

In the modern age of ubiquitous internet access and unrelenting media attention to high-profile criminal cases, the prejudicial effect of a criminal defendant appearing in shackles, jail attire, and bullet-proof or suicide vests at any hearing threatens fundamental fairness. These appearances increase the likelihood that the future jury pool will be exposed to Mr. Robinson in this state. In this case, where publication of each and every pretrial hearing is a foregone conclusion and where Mr. Robinson faces the potential penalty of death, additional care must be taken to ensure Mr. Robinson receives a fair trial by an impartial jury. *See Sampson v. United States*, 724 F.3d 150, 163 (1st Cir. 2013) (“The right to an impartial jury is nowhere as precious as when a defendant is on trial for his life.”).

Indeed, the Supreme Court “has stressed the ‘acute need’ for reliable decisionmaking when the death penalty is at issue.” *Deck*, 544 U.S. at 633. Reliable decision-making must be grounded in admissible evidence, not on innuendo derived from a defendant’s custodial status. *See Holbrook*, 475 U.S. at 567 (“Central to the right to a fair trial, guaranteed by the Sixth and Fourteenth Amendments, is the principle that one accused of a crime is entitled to have his guilt or innocence determined solely on the basis of the evidence introduced at trial, and not on grounds of official suspicion, indictment, continued custody, or other circumstances not adduced as proof at trial.”)

Illustrative of the magnitude of the issue, on September 16, 2025 at 3:00 p.m. Mr. Robinson appeared for the first time in this case from the Utah County Jail via Webex. The hearing was streamed live and covered by media outlets the world over including the BBC, Al Jazeera, ABC, CBS, NBC, Newsweek, NPR, the Daily Mail, Fox News, CNN and countless others, generating approximately 18,000 news search results.⁴ Mr. Robinson’s physical appearance alone was and is subject to endless scrutiny and speculation. One article described Mr. Robinson during his initial appearance as “emotionless” and “star[ing] blankly ahead” and “sporting slightly mussed locks, several days’ worth of facial hair” and wearing “a green ‘suicide smock[.]’”⁵ With each development in the case generating thousands of articles and comments online, the likelihood of potential jurors seeing and drawing conclusions regarding Mr. Robinson’s guilt and or deserved punishment from obvious signs of pretrial incarceration will only increase.

⁴ An October 5, 2025 search in Google “News” tab of “Tyler Robinson first court appearance” generated over 18,000 results including articles and videos from the media outlets listed here.

⁵ Nesi, Chris, *Tyler Robinson emotionless*, NY POST (posted 9/16/2025, 5:28 p.m. ET), available at <https://nypost.com/2025/09/16/us-news/tyler-robinson-emotionless-wearing-suicide-smock-in-first-virtual-court-appearance-since-charlie-kirk-assassination/>.

Indeed, given the pervasive media coverage in this case, the repeated and ubiquitous display of Mr. Robinson in jail garb, shackles, and a suicide vest will undoubtedly be viewed by prospective jurors and will inevitably lead to prospective juror perception that he is guilty and deserving of death. *See, e.g.,* Street, Kylene L., et al. *The Cloak of Innocence: Perception of Attire in the Courtroom*, J. of Police & Criminal Psychology (2024):1-11 (empirical study finding that a defendant dressed in a prison jumpsuit versus a dress suit was seen as “more aggressive” , and that this perceived aggressiveness resulted in defendants being found 5.27 times more likely than mock jurors in the formal attire condition to render a guilty verdict than a not guilty verdict.”)⁶; Nancy Mehrkens Steblay et al., *The Effects of Pretrial Publicity on Juror Verdicts: A Meta-Analytic Review*, 23 LAW & HUM. BEHAV. 219 (1999) (The effect of pretrial publicity on juror verdicts was examined through a meta-analysis of 44 empirical tests representing 5,755 subjects, finding that subjects exposed to negative PTP were significantly more likely to judge the defendant guilty compared to subjects exposed to less or no negative PTP.)⁷

In the face of worldwide scrutiny, permitting Mr. Robinson to wear civilian clothing for court appearances is a minor inconvenience compared to the already present concerns with securing a fair trial before an impartial jury.

B. The Court Must Make an Individualized Assessment to Justify Any Restraints and in This Case Shackling of Mr. Robinson Is Not Justified.

The Court should allow Mr. Robinson to appear at all proceedings without restraint. Given the need for a particularized evaluation of the circumstances of this case, the Court should order appropriate disclosures by the relevant governmental entities (i.e. the Utah County Sheriff

⁶ Available at <https://link.springer.com/article/10.1007/s11896-024-09710-w>.

⁷https://scholar.google.com/scholar?hl=en&as_sdt=0%2C5&q=The+Effects+of+Pretrial+Publicity+on+Juror+Verdicts%3A+A+Meta-Analytic+Review&btnG=.

Department) and thereafter take evidence on this issue. Mr. Robinson requests the opportunity to supplement briefing after the evidentiary hearing.

“The rule that a defendant be tried in the ‘garb of innocence’ has generally been extended to include a defendant’s right to be tried without being shackled, chained, bound, handcuffed, gagged, or otherwise physically restrained.” *Mitchell*, 824 P.2d at 473. The use of restraints “is itself something of an affront to the very dignity and decorum of judicial proceedings” that the Court seeks to uphold. *Allen*, 397 U.S. at 344. In addition, even when not visible, restraints impact the ability of the criminal defendant to participate in the proceedings by causing confusion or distraction, impairing communication between the defendant and his counsel, and creating discomfort or pain. As stressed in *Allen*, “one of the defendant’s primary advantages of being present at the trial, his ability to communicate with his counsel, is greatly reduced when the defendant is in a condition of total restraint.” *Id.* See also *Spain*, 883 F.2d at 720–21 (“The lower federal courts have observed two further weaknesses in imposing physical restraints: they may confuse and embarrass the defendant, thereby impairing his mental faculties; and they may cause him pain.”); *Zygadlo v. Wainwright*, 720 F.2d 1221, 1223 (11th Cir. 1983) (even non-visible shackles “may confuse the defendant, impair his ability to confer with counsel, and significantly affect the trial strategy he chooses to follow” (internal quotation and citations omitted)).

As discussed above, the Supreme Court has found that “the Fifth and Fourteen Amendments prohibit the use of physical restraints visible to the jury absent a trial court determination, in the exercise of its discretion, that they are justified by a state interest specific to a particular trial.” *Deck*, 544 U.S. at 629. Thus, trial courts should carefully consider the need (or lack thereof) for restraints “to prevent an escape, resort to violence, or disruption of the trial.” *Mitchell*, 824 P.2d at 473; see also *U.S. v. Bell*, 819 F.3d 310, 321 (7th Cir. 2016) (“restraints,

because they are regarded as an extreme measure, should be employed only in the presence of a special need” (cleaned up)). A defendant appearing in unjustified visible restraints is a due process violation so serious that, on appeal, the State must show the defendant was not prejudiced beyond a reasonable doubt. *See, e.g., U.S. v. Morales*, 758 F.3d 1232, 1237 (10th Cir. 2014).

Mr. Robinson is a twenty-two-year-old, life-long resident of the State of Utah. He has no criminal history⁸ and, upon information and belief, has been polite, deferential to jail staff, and without any disciplinary issue while in the Utah County Jail. Although he has been accused of (but not convicted of) aggravated murder, that fact alone is insufficient to justify restraints. *See Young*, 853 P.2d at 350–51 (“The mere fact that a jury convicted a defendant of first degree murder is not a sufficient basis for a decision to shackle him during the penalty phase.”). Mr. Robinson intends to exercise his right to be present at all stages of these criminal proceedings as constitutionally guaranteed. *See* U.S. Const. XI, XIV; Utah Const. art. I, § 12. This Court should allow him to exercise this right without looking “like a bear on a chain.” *Sanchez-Gomez*, 859 F.3d at 661.

As noted above, the world is watching Mr. Robinson and these proceedings. Even in pretrial proceedings, additional care must be taken to preserve the presumption of innocence and to prevent tainting the pool of jurors that will ultimately decide Mr. Robinson’s guilt or innocence, and if guilty, if Mr. Robinson should receive the death penalty. As such, the Court should order the appropriate disclosures by the Utah County Sheriff Department and thereafter set a hearing for the production of evidence necessary for the Court’s determination.

Finally, given that court and jail security protocols and prejudicial material and opinions not admissible at the guilt phase of this trial will be evidenced at the hearing, it is reasonable and appropriate for this Court to close those proceedings and maintain the transcript, evidence, and

⁸ *See* Document 3 (Public Safety Assessment Report), on file with the Court.

pleadings commenting thereupon as private in the record. *See generally Kearns-Trib. Corp., Publisher of Salt Lake Trib. v. Lewis*, 685 P.2d 515, 524 (Utah 1984) (“[I]f disclosure of the allegedly prejudicial material is essential to the conduct of the hearing on the motion for closure, the court should first seek a voluntary agreement from the parties who wish to be present that they will not disclose the allegedly prejudicial information until it is disclosed at the trial or the trial has concluded. Absent such an agreement, the court may close the courtroom in order to conduct in camera whatever proceedings cannot be conducted without disclosure of the allegedly prejudicial information.” (citation omitted)).

CONCLUSION

Based upon the foregoing, the Court should order relief consistent with Mr. Robinson’s request.

DATED this 9th day of October, 2025.

Respectfully submitted,

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/ Michael N. Burt
Michael N. Burt

/s/ Richard G. Novak
Richard G. Novak

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 9th day of October, 2025, which served all attorneys of record.

/s/ Kathryn N. Nester
Kathryn N. Nester

Exhibit A

SEP 25 2024

IN THE DISTRICT COURT OF THE FOURTH JUDICIAL DISTRICT OF
THE STATE OF IDAHO, IN AND FOR THE COUNTY OF ADA

By TRIN TRIPPLE, Clerk
By ANNA MEYER
DEPUTY

STATE OF IDAHO,

Plaintiff,

v.

BRYAN C. KOHBERGER,

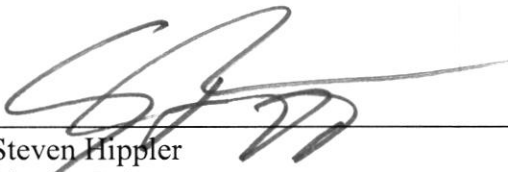
Defendant.

Ada County Case No. CR01-24-31665

**ORDER TEMPORARILY GRANTING
DEFENDANT'S MOTION TO WEAR
STREET CLOTHING**

Before the Court is Defendant's "Motion for Defendant to Wear Street Clothing to All Public Hearings" (Sept. 20, 2024). Having considered the motion and for good cause showing, the Court will TEMPORARILY GRANT the motion for purposes of the hearing noticed for September 26, 2024 only. Civilian clothing must be provided by defense counsel to the Ada County Sheriff's Office in advance of the hearing.¹ At that hearing, a date will be set for a subsequent closed/sealed hearing on Defendant's motion as it pertains to his future appearances. IT IS SO ORDERED.

DATED this 25th day of September, 2024.



Steven Hippler
District Judge

¹ The Court may direct the Ada County Sheriff's Office to employ other security measures related to Defendant's September 26, 2024 appearance.

Addendum F

(Private)

Addendum G

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Attorneys for Tyler James Robinson

IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT

IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	DEFENDANT’S REPLY TO SHERIFF’S RESPONSE TO MOTION TO APPEAR AT ALL IN-PERSON PROCEEDINGS IN CIVILIAN CLOTHING AND WITHOUT RESTRAINTS and MEMORANDUM IN SUPPORT Case No. 251403576 Honorable Tony F. Graf, Jr.
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INTRODUCTION

Defendant, Tyler James Robinson, by and through undersigned counsel hereby files this Reply to the Sheriff's *Response to Defendant's Motion ("Motion") to Appear at All In-Person Proceedings in Civilian Clothing and Without Restraints ("Resp")*.

This reply addresses four of the legal arguments in the Sheriff's Response: (1) Mr. Robinson's right to be free from restraints applies only at a jury trial; (2) the law prohibiting court appearances in jail clothing also applies only in front of the jury; (3) all non-critical, non-evidentiary hearings should be held remotely; and (4) the law supports the Sheriff's Office position that Mr. Robinson's "hypothesized" concerns that prospective jurors "might" see Mr. Robinson in jail clothing and shackles and could then perceive that he is guilty should be adequately addressed by (a) appearing remotely; and (b) limiting media coverage, or video and photographic coverage, at the least, so that Defendant's physical appearance is no longer the subject of interest.

While each of these legal arguments is addressed in turn, Mr. Robinson begins by addressing the Sheriff's factual assertion that Mr. Robinson's concerns about prejudicial pretrial publicity are merely "hypothesiz(ed)." *Resp*, at 18.¹

ARGUMENT

I. MR. ROBINSON'S CONCERNS ABOUT PREJUDICIAL PRETRIAL PUBLICITY ARE NOT MERELY "HYPOTHESIZ(ED)."

Mr. Robinson's concern about the effect of prejudicial pretrial publicity in this extraordinary case is not merely "hypothesiz(ed)." *See Resp*, at 18. "The problem is an ancient

¹ Two foundational issues of whether the Sheriff has standing to appear in this case and whether its brief violated the Court's October 14, 2025 Interim Order are addressed in Defendant's *Motion to Strike* filed October 21, 2025.

one. Mr. Justice Holmes stated no more than a commonplace when, two generations ago, he noted that “(a)ny judge who has sat with juries knows that, in spite of forms, they are extremely likely to be impregnated by the environing atmosphere.” *Groppi v. Wisconsin*, 400 U.S. 505, 510 (1971) (quoting *Frank v. Mangum*, 237 U.S. 309, 349 (1915) (dissenting opinion)). Nowhere is this statement more true than where television cameras have been allowed into the courtroom at the pretrial stages of a criminal case or where television news crews are turned loose on those eager to obtain fame or fortune concerning a pending criminal case.

The United States Supreme Court long ago declared in *Estes v. Texas* that,

From the moment the trial judge announces that a case will be televised it becomes a cause celebre. The whole community, including prospective jurors, becomes interested in all the morbid details surrounding it. The approaching trial immediately assumes an important status in the public press and the accused is highly publicized along with the offense with which he is charged. Every juror carries with him into the jury box these solemn facts and thus increases the change of prejudice that is present in every criminal case. And we must remember that realistically it is only the notorious trial which will be broadcast . . . The conscious or unconscious effect that this may have on the juror’s judgment cannot be evaluated, but experience indicates that it is not only possible but highly probable that it will have a direct bearing on his vote as to guilt or innocence.

381 U.S. 532, 545 (1965).

In this case, Mr. Robinson appeared for his first court appearance, without the benefit of counsel, on September 16, 2025, on Webex from the Utah County Jail for a full twelve minutes wearing what appeared to be a bullet-proof or suicide vest. See FULL HEARING: Tyler Robinson makes first court appearance after arrest, FOX 13 News Utah, (Sept. 13, 2025), <https://www.youtube.com/watch?v=BsNojXN6iUw> (the description below the video states Mr. Robinson was “[w]earing a green bulletproof vest”) (As of October 22, 2025 this video had received 137,959 views). The media broadcast the entire hearing and thus exposed countless numbers of prospective jurors to the image of him sitting in jail, clothed in prison garb. They

also heard the Court ask whether the jail was ready (*id.* at 0:28) and heard the Court pronounce that Mr. Robinson was being held without bail because he was being charged with a capital offense (*id.* at 2:34). Moreover, since the date of this appearance, clips from that video or another showing close-ups of his booking photograph displaying the same clothing which were released by the Sheriff, have been broadcast thousands of times with subsequent stories about this case.

Even before Mr. Robinson's first court appearance, politicians, federal and state law enforcement officers, and the lead prosecution attorney in this case publicly offered their opinions about Mr. Robinson, the details of the investigation (including an alleged confession), and even specific items of evidence and forensic tests that have not yet been deemed admissible at trial. *See Gentile v. State Bar of Nevada*, 501 U.S. 1030, 1046 (1991) (noting that public statements that are "obvious bases for a finding of prejudice" include mention of a confession or of "evidence from searches or test results."); *Sheppard v. Maxwell*, 384 U.S. 333, 350 (1966) ("[T]he Court has also pointed out that (l)egal trials are not like elections, to be won through the use of the meeting-hall, the radio, and the newspaper.").

For instance, two days after the shooting and shortly after Mr. Robinson's arrest, President Donald J. Trump appeared on a nationwide television broadcast and announced "with a high degree of certainty, we have him" and stated, "I hope he is going to be found guilty", and "I hope he gets the death penalty." Donald Trump Confirms Charlie Kirk Shooting Suspect Caught by Police, Times News, (Sept. 12, 2025), <https://www.youtube.com/watch?v=KKk4TXK07RQ> at 0:01, 1:13 and 1:18, respectively. On the same date, the Governor of Utah, began his video press conference dramatically with the words, "WE GOT HIM." Breaking: Mugshot of Charlie Kirk's suspected killer released - 'We got him!', GB News (Sept. 12, 2025) <https://www.youtube.com/watch?v=H9QcsrpuTY8> at 0:15. Flanked by Utah County Sheriff

Smith, he and FBI Director Kash Patel then spent 24 minutes detailing all the alleged evidence against Mr. Robinson, including the allegation that he “had confessed” (*id.* at 0:29), and the content of incriminating messages allegedly connected to Mr. Robinson. At the end, the Governor returned to the microphone and announced that “there is one person responsible for what happened here and that person is now in custody and will be charged soon and will be held accountable.” *Id.* at 20:27.²

On September 15, 2025, Mr. Patel appeared on national television and announced, “that the DNA hits from the towel that was wrapped around the firearm and ... the screwdriver are positively processed for the suspect in custody.” FBI Director Patel on Charlie Kirk killing, LiveNOW from FOX, (Sept. 15, 2025), <https://www.youtube.com/watch?v=xY1ELLb623k> at 1:40.

Also on September 15, 2025, U.S. Attorney General Pam Bondi appeared on Fox News side-by-side with a blowup of Mr. Robinson’s mugshot in prison garb and announced that “the governor has said that they want to seek the death penalty which is very real in Utah and they still have the firing squad in Utah”, and that “as federal prosecutors we will look to see if we have federal charges as well and of course if we do we will also indict and work hand in hand with the state to ensure that this horrible human being faces the maximum extent of the law.” AG Bondi On Potential Federal Charges for Charlie Kirk’s Alleged Assassin, Fox News, (Sept. 15, 2025), <https://x.com/FoxNews/status/1967773759730815167> at 0:17.

² See American Bar Association, *Fair Trial and Public Discourse* (2013 Fourth Edition), Standard 8-2.2 (Specific Guidelines Regarding Prosecutorial Statements) (prohibiting prosecutorial comment on “the personal opinion of the prosecutor as to the guilt or innocence of the defendant”, “the existence or contents of any confession, admission, or statement given by a defendant”, “the performance or results of any examinations or tests”, or “the nature of physical evidence expected to be presented”); Standard 8-3.1 (same prohibition applies to law enforcement officers and agencies.).

On September 16, 2025, the elected County Attorney who has lead responsibility for the prosecution of this case held a 45 minute live-streamed press conference just prior to Mr. Robinson's first court appearance. Following the lead of the Governor and federal officials, he proceeded to outline all the alleged evidence against Mr. Robinson, including that "DNA consistent with Robinson was found on the rifle's trigger", that "[a]fter shooting Mr. Kirk, Robinson hid the gun, discarded the clothing he wore when he fired the rifle, and told his roommate to delete incriminating text messages and not talk to police." Utah County Attorney Press Conference on Tyler Robinson arrest announced, East Idaho News, (Sept. 16, 2025), <https://www.youtube.com/watch?v=m0QggDLxDls> at 26:07. He later added that "DNA consistent with ...defendant was found on the trigger, other parts of the rifle, the fired cartridge casing, two of the three unfired cartridges, and the towel" (*id.* at 35:09) and that in discussion with his parents Mr. Robinson had "implied that he was the shooter and stated that he couldn't go to jail and just wanted to end it. When asked why he did it, Robinson explained there is too much evil and the guy referring to Charlie Kirk spreads." *Id.* at 38:21.

The County Attorney then read aloud and *verbatim* the complete content of incriminating text messages, claiming they were connected to Mr. Robinson and his roommate. *Id.* at 39:49–44:16. After setting forth in detail all of the alleged evidence against Mr. Robinson, he ended his press conference with the inexplicable statement: "Why are we reluctant to share the details of the investigation itself and comment on the case? Because I want to ensure a fair and impartial trial." *Id.* at 45:18.

Immediately following that press conference, Utah County Sheriff Mike Smith and Under-Sheriff Shaun Bufton, conducted their own joint television interview with News Nation (2.42 million subscribers). Charlie Kirk suspect on 'special watch' in jail: Utah sheriff, News

Nation, (Sept. 16, 2025), <https://www.youtube.com/watch?v=6LJVrxwp9dM>. During this interview, against the backdrop of clips of Mr. Robinson's image from his initial court appearance, both Smith and Bufton offered their opinions and speculations about how strong the evidence was against Mr. Robinson, whether the video of his court appearance indicated he showed emotion or was remorseful, and whether Mr. Robinson is homosexual.



Charlie Kirk suspect on 'special watch' in jail: Utah sheriff | Elizabeth Vargas Reports

Q. Sheriff Smith, you are at that press conference with the DA today. There is a huge amount of evidence against Tyler Robinson, DNA on the towel, the rifle, the cartridges. **Is this beginning to seem like an open and shut case?**

Sheriff Smith: Well, you we would hope they the investigation continues. we're not going to look at it is open and shut. **But you're right. I agree with you 100%. The evidence is piling up and is becoming overwhelming.**

Id. at 0:12–0:45 (emphasis added).

Q. Undersheriff [we] are looking at video right now of Tyler Robinson just a short time ago appearing for his first court hearing. I was struck by the fact that he showed absolutely zero emotion and there are reports he is no longer cooperating with the investigation. Can you confirm that?

Undersheriff Bufton: He certainly doesn't seem to be showing any emotion right there.

Id. at 0:45–1:12.

Q. What's his demeanor in jail? [I]s he expressing any remorse of any kind?

Undersheriff Bufton: Again, I haven't been down to visit him so. this is the photos that I'm s[ee]ing is the one you're s[ee]ing and doesn't seem to be much emotion there.

Id. at 1:17–1:35.

Q. Sheriff Smith, the charging documents and the DA said today that Robinson's family had said that he'd grown more pro-gay and more pro [trans rights] over the past 2 years. does that coincide with the same time that he became romantically involved with his roommate?

Sheriff Smith: Well, from the from the text messages that were that were read today and also things that we know. Yes, it would appear that. those things are all moving in the same direction.

Id. at 2:15–2:46.

And finally, on September 22, 2025, President Trump delivered a speech at Mr. Kirk's memorial service, telling thousands that "the depraved assassin who planned and executed Charlie's killing has been arrested and charged with capital murder. God willing, he will receive the full and ultimate punishment for his horrific crime." *Trump calls for death penalty for Charlie Kirk's killer*, (Sept. 22, 2025), <https://www.youtube.com/watch?v=jmMfSRrDBTU> at 0:07.

The foregoing is illustrative, but not exhaustive. There are thousands of similar, and in most instances, much worse items of prejudicial pretrial publicity that have relentlessly focused on Mr. Robinson's demeanor and appearance during his jail-house court appearance and have

polluted the waters of justice in this case.³ Mr. Robinson agrees with the Sheriff’s characterization of the media coverage: “[t]he public assassination of a popular political commentator that underlies this case has garnered worldwide attention, created a lightning rod for controversy, and provided a platform for pundits and other attention seekers with varying levels of mental stability.” *Resp*, at 9.

Respectfully, however, this statement does not go far enough, and does not justify shackling Mr. Robinson in court. A more apt description from one scholar is that this case has become a “Content Tornado.” See Katie Grace Frisbee, *Caught In The Content Tornado: How To Protect Violent-Crime Trials From The Prejudicial Effects Of Live Streaming*, 74 DUKE LAW J. 1053 (2025). As the author explains:

The content tornado... refers to the whirlwind of fact, fiction, and opinion that emerges when violent-crime trials are live streamed on social media. This concept describes how live streamed trials generate emotional and moralized content that gets amplified by social media algorithms. The emotional nature of violent-crime trials—fueled by anger, grief, and public passion—draws viewers in, and as they engage with the content, they become more likely to produce their own secondary content on the subject. This user-generated secondary content—in the form of videos, comments, and posts—amplifies the tornado and mixes accurate information with misinformation, exaggerations, and public biases.

Id. at 1053.

³ For example, on October 18, 2025, Agent Truth posted a 17-minute video in which it falsely asserted that at his last court appearance on September 29, 2025, Mr. Robinson personally appeared in court in an orange jumpsuit and handcuffs and requested through his lawyer to have street clothing. This action, according to the video caption, caused the courtroom to “erupt” and raised the issue of whether Mr. Robinson’s alleged request for street clothing was either proof that Mr. Robinson was beginning to admit and understand what he had done or was instead his manipulative attempt to control the narrative. JUST IN: Tyler Robinson Finally SPEAKS — Courtroom ERUPTS as Tyler Robinson Breaks His Silence, Agent Truth, (Oct. 18, 2025), <https://www.youtube.com/watch?v=eoHlHgVSjil>.

Clearly, the prejudicial pretrial publicity in this case has already both confirmed and exceeded defense counsel's merely "'hypothesized' concerns that prospective jurors 'might' see Mr. Robinson in jail clothing and shackles and could then perceive that he is guilty." *Resp*, at 18. These concerns are real, not hypothesized, and there can be no doubt that, as explained in *Estes*, prospective jurors have in fact seen this coverage and will be affected by it.⁴ *See also Sheppard v. Maxwell*, 384 U.S. 333, 351–52 (1966) ("Moreover, the burden of showing essential unfairness as a demonstrable reality, need not be undertaken when television has exposed the community repeatedly and in depth to the spectacle of (the accused)... confessing in detail to the crimes with which he was later to be charged.") (cleaned up).

Nor are these concerns merely addressed to the impact of this prejudicial pretrial publicity on the issue of guilt or innocence. As explained in *Deck v. Missouri*, a case that is central to Mr. Robinson's motion but largely unaddressed by the Sheriff,

The appearance of the offender during the penalty phase in shackles, however, almost inevitably implies to a jury, as a matter of common sense, that court authorities consider the offender a danger to the community—often a statutory aggravator and nearly always a relevant factor in jury decisionmaking, even where the State does not specifically argue the point.... It also almost inevitably affects adversely the jury's perception of the character of the defendant.... And it thereby inevitably undermines the jury's ability to weigh accurately all relevant considerations—considerations that are often unquantifiable and elusive—when it determines whether a defendant deserves death. In these ways, the use of shackles can be a "thumb [on] death's side of the scale."

544 U.S. 622, 633 (2005) (quoting *Sochor v. Florida*, 504 U.S. 527, 532 (1992)).

⁴ In terms of the extent and nature of the prejudicial pretrial publicity, this case bears a strong resemblance to *United States v. McVeigh*, 918 F. Supp. 1467, 1470–71 (W.D. Okla. 1996), where "national media coverage of the explosion was extremely comprehensive", and "[t]he immediate reactions of the President, the Attorney General, and an FBI spokesman were broadcast across the nation." In that case, the district court ruled that because of this prejudicial publicity, the defendants could not get a fair trial anywhere in the entire state of Oklahoma.

II. MR. ROBINSON’S RIGHT TO BE FREE FROM RESTRAINTS APPLIES BEYOND A JURY TRIAL.

At pages 4–8 of Mr. Robinson’s *Motion* he cites cases from eight different jurisdictions that have squarely held that the right to be free from unwarranted courtroom restraints “applies whether the proceeding is pretrial, trial, or sentencing, with a jury or without.” *United States v. Sanchez-Gomez*, 859 F.3d 649, 661 (9th Cir. 2017) (en banc), *vacated on other grounds*, 584 U.S. 381 (2018). To reiterate, one of Mr. Robinson’s central concerns is that “[i]n the modern age of ubiquitous internet access and unrelenting media attention to high-profile criminal cases, the prejudicial effect of a criminal defendant appearing in shackles, jail attire, and bullet-proof or suicide vests *at any hearing* threatens fundamental fairness”, that “these appearances increase the likelihood that the future jury pool will be exposed to Mr. Robinson in this state”, and that “given the pervasive media coverage in this case, the repeated and ubiquitous display of Mr. Robinson in jail garb, shackles, and a suicide vest will undoubtedly be viewed by prospective jurors will inevitably lead to prospective juror perception that he is guilty and deserving of death.” *Motion* at 13, 15 (emphasis added) (citing publicity from this case and empirical studies to support these arguments).

While conceding that “this case has garnered worldwide attention, created a lightning rod for controversy, and provided a platform for pundits and other attention seekers with varying levels of mental stability” (*Resp*, at 9), and that “Defendant’s appearance in just a few proceedings so far has been the subject of worldwide media scrutiny” (*Resp*, at 15), the Sheriff does not address the actual content of the prejudicial publicity in this case, nor the empirical studies that Mr. Robinson cites. Instead, the Sheriff dismisses this crucial evidence as mere “hypothesizing”. The Sheriff does not address Mr. Robinson’s argument that in the modern age of ubiquitous internet access and unrelenting media attention to high-profile criminal cases, as

demonstrated by the tone and content of the massive pretrial publicity to date, requiring Mr. Robinson to make court appearances on worldwide television in shackles, jail attire, and suicide vests is functionally indistinguishable from parading him in front of the jury in such condition.

The Sheriff's legal analysis is equally unconvincing. The Sheriff principally relies upon *State v. Cravens*, a Utah Court of Appeals case decided five years *before* the United States Supreme Court ruled in *Deck* that there are important constitutional interests at stake, such as the right to consult with counsel and courtroom dignity and decorum, that are jeopardized by courtroom shackling and are separate and distinct from the effect of such a practice on the presumption of innocence. 2000 UT App 344, 15 P. 3d 635. *Cravens* has no constitutional validity in light of *Deck*. The Sheriff is also incorrect in claiming that *Cravens* "explains why a defendant's rights to an impartial jury and due process, as affected by clothing and shackles, applies only when a jury is involved." *Resp.* at 10. *Cravens* is a prison attire case, not a shackling case, and in its two-paragraph discussion of prison attire it says nothing about the unique harm caused by shackling. Most importantly, *Cravens*, like the Sheriff, does not address Mr. Robinson's argument that evidence of his shackling and of his wearing of jail attire is reaching the pool of prospective jurors through worldwide television and internet broadcasting of his court appearances.

The Sheriff argues that Mr. Robinson's reliance on post-*Deck* cases such as *Sanchez-Gomez* is misplaced because "when a case is vacated for any reason, the effect is that the previous ruling has no precedential value" and becomes "meaningless". *Resp.* at 5. This is doctrinally incorrect.⁵ *United States v. Sanchez-Gomez*, 859 F.3d 649, 661 (9th Cir. 2017), and

⁵ A Westlaw search of all Utah cases in which Utah courts have relied upon cases that have been "reversed on other grounds" reveals 303 such cases as of October 22, 2025. An identical search

the other seven cases cited by Mr. Robinson are persuasive, represent the greater weight of authority, and should be followed in this case in the absence of any controlling post-*Deck* decision in Utah.

As a backup position, the Sheriff repeatedly invokes “[u]niform pre-trial security practices in Utah courts”, uniform court rules, and an October 16, 2025 Utah Administrative Office of the Courts policy statement (potentially adopted for the purpose of supporting the Sheriff’s position in this case) to argue for a blanket allowance of jail attire and shackling in all “high-profile” cases. Resp, at 18. The Sheriff’s reliance on a uniform policy to justify physical restraints has not been endorsed by any Utah court, and is contrary to the United States Supreme Court’s decision in *Deck*, as well as countless cases construing *Deck*, and, importantly, the Utah Supreme Court’s decision in *State v. Young*, 853 P.2d 327, 350-351 (Utah 1993) (“The trial court should look at the particular facts of the case and the conduct of the proceedings and should balance the need for safety and security in the courtroom against the potential for prejudice.”) *See Motion*, at 6–7 (collecting cases). *See also Deck*, 544 U.S. at 624, 626–28, 633 (restraints must be “justified by an essential state interest ... specific to the defendant on trial” and “any such determination must be case specific; that is to say, it should reflect particular concerns ... related to the defendant on trial.”)⁶

of all federal cases that have relied upon cases that have been “reversed on other grounds” reveals 10,000 such cases as of October 22, 2025.

⁶ *Accord Matter of Clark*, 87 Misc. 3d 1207(A), 2025 WL 2715377 (N.Y. Sup. Ct. 2025) (unpublished decision) (“A criminal court may not keep a defendant restrained in the courtroom unless such court ‘state[s] a particularized reason for doing so on the record’ and that reason is tied to an ‘essential state interest’ amounting to ‘necessity’... This rule applies with equal force to nonjury proceedings.” (citation omitted)); *State v. Rushing*, 573 P.3d 72, 81 (Ariz. 2025) (“Here, the trial court cited Rushing’s prior murder conviction and current capital conviction to justify using visible restraints. The judge may also have deferred to the sheriff’s policy regarding jail garb, though that is unclear. Regardless, neither rationale satisfies the requirements set forth in *Deck*, which mandate case-specific findings—for example, a security or escape risk—beyond

In this case, the Sheriff has offered no case specific “essential state interest ... specific to the defendant on trial” that would justify shackling Mr. Robinson or requiring him to appear in jail garb. *See id.* In addition, the Sheriff has provided no information or evidence specific to Mr. Robinson that would justify its request.

III. THE LAW PROHIBITING COURT APPEARANCES IN JAIL CLOTHING APPLIES BEYOND A JURY TRIAL.

The Sheriff relies solely on *State v. Cravens*, 2000 UT App 344, 15 P. 3d 635, and its uniform policy arguments to address Mr. Robinson’s claim that he should not be forced to wear jail clothing during any court appearance given that his court appearances are being broadcast to the world. *Cravens* is addressed above, as are the sheriff’s uniform policy arguments.

In relation to jail clothing in particular, it must also be pointed out that *Cravens* is inconsistent with the Utah Supreme Court’s decision in *Chess v. Smith*, 617 P.2d 341, 345 (Utah 1980). *Cravens* states that “[t]he grave concern expressed in ...*Chess* is that ‘[t]he prejudicial effect that flows from a defendant’s appearing *before a jury* in identifiable prison garb is not measurable, and it is so potentially prejudicial as to create a substantial risk of fundamental unfairness in a criminal trial.’” 2000 UT App 344, ¶ 16 (emphasis in *Cravens*) (quoting *Chess*,

a defendant’s criminal history or institutional policy.”); *People v. Dunn*, 572 P.3d 19, 47 (Cal. 2025) (“The court may not, we have emphasized, merely rely on the judgment of law enforcement or court security officers or the unsubstantiated comments of others.”); *State v. Finch*, 975 P.2d 967, 1002 (Wash. 1999) (“[T]he deference given to the correctional officers is error. Courts have specifically found reversible error where the trial court based its decision solely on the judgment of correctional officers who believed that using restraints during trial was necessary to maintain security, while no other justifiable basis existed on the record.”); *People v. Vigliotti*, 203 A.D.2d 898 (N.Y. App. Div. 1994) (“[t]he report of the Sheriff’s Department, standing alone, did not provide a sufficient basis for ...shackling and handcuffing”); *Lemons v. Skidmore*, 985 F.2d 354, 356 (7th Cir. 1993) (“The magistrate judge abused his discretion by relying on the self-serving opinion of fellow penal officers of the defendants and not holding a hearing to determine what, if any, restraints were necessary”).

617 P.2d at 344). However, *Chess* was also grounded in the courtroom decorum and dignity rationale later endorsed by the United States Supreme Court in *Deck*:

It would seem that the occurrence of a defendant, armed with a presumption of innocence, standing trial before a jury in prison clothes should long ago have ceased. A decent respect for basic fairness and the indignity of appearing in a court of law in clothes which mark a defendant, who has not been convicted, as a lawbreaker would suggest as much.

Chess, 617 P.2d at 345; *see also Motion*, at 10.

This rationale justifies extending the prohibition against jail garb beyond the jury trial context, and in any event Mr. Robinson's jury trial rights are implicated here because his court appearances are being broadcast to the world.

IV. THIS COURT SHOULD REJECT THE SHERIFF'S SUGGESTION THAT CONCERNS ABOUT PREJUDICIAL PRETRIAL PUBLICITY CAN BE ADEQUATELY ADDRESSED BY REQUIRING MR. ROBINSON TO FORFEIT HIS CONSTITUTIONAL AND STATUTORY RIGHT TO BE PRESENT AT ALL STAGES OF THIS CAPITAL PROSECUTION.

The Sheriff maintains that "[t]he Court could alleviate many of Defendant's concerns about the perceived negative publicity of appearing in inmate apparel and in shackles at this pre-trial stage by limiting in-person appearances in this matter to case-critical and evidentiary hearings only." *Resp*, at 2, 18. According to the Sheriff, "[a]ppearing remotely provides the option to appear with no video and thus satisfy some of Defendant's concerns of mounting public prejudice." *Id.* at 15. There are a number of problems with this argument.⁷

Under the Due Process Clause of the Fourteenth Amendment, "an accused has [the] right to be present at all stages of the trial where his absence might frustrate the fairness of the

⁷ In an abundance of caution, Mr. Robinson addresses the request for affirmative relief made in the Sheriff's Response under Utah Rule of Criminal Procedure 17.5 herein to emphasize the constitutional concerns. Mr. Robinson maintains that the request should have been addressed in a separate pleading and filed by the appropriate participant. *See* Doc 115. Mr. Robinson does not seek "two bites at the apple," rather, attempts to address the unorthodox nature of the State's request appropriately.

proceedings.” *Faretta v. California*, 422 U.S. 806, 819, n. 15 (1975). This federal constitutional right extends beyond the right to be present at the trial. *See, e.g., State v. Maestas*, 2012 UT 46, ¶ 56, 299 P.3d 892 (under the Fourteenth Amendment, “the defendant is entitled to appear ‘whenever his presence has a relation, reasonably substantial, to the ful[l]ness of his opportunity to defend against the charge’ or where his ‘presence would contribute to the fairness of the procedure.’” (quoting *Kentucky v. Stincer*, 482 U.S. 730, 745 (1987))).

Similarly, article I, section 12 of the Utah Constitution broadly provides that “[i]n criminal prosecutions the accused shall have the right to appear and defend in person and by counsel...” The Utah Supreme Court has declared that “[t]here is no doubt but that the constitutional right to appear and defend in person and by counsel is a sacred right of one accused of crime which may not be infringed or frittered away, and is one which may not be denied by a court or be waived by counsel.” *State v. Aikers*, 51 P.2d 1052, 1055 (Utah 1935). “Where a defendant is in custody, and therefore not a free agent, the duty is on the court to see that he is personally present at every stage of the trial”, and “[p]roceedings had in the absence of a defendant, without his fault and without his knowledge or consent, is ground for reversal.” *Id.* at 1066. *See also* Utah Code § 77-1-6(1)(a) (“In criminal prosecutions the defendant is entitled to...appear in person and defend in person or by counsel.”) Thus, “constitutionally and statutorily and case-wide defendant has a right to be present at all stages of the trial, and a duty as well[.]” *State v. Lee*, 585 P.2d 58, 58 (Utah 1978).

A defendant may waive his or her right to be present at any proceeding, but that waiver must be knowing, voluntary and intelligent. *See State v. Wanosik*, 2003 UT 46, ¶ 12, 79 P.3d 937. A waiver is not knowing, voluntary, or intelligent if a defendant is forced to give up one constitutional right in order to assert another. *See Simmons v. United States*, 390 U.S. 377, 394

(1968) (“[W]e find it intolerable that one constitutional right should have to be surrendered in order to assert another.”). Similarly, here it would be intolerable to hold that Mr. Robinson’s “right to be present at all stages of the criminal proceedings against (him)” must be surrendered in order to protect his constitutional right to freedom from shackles and jail garb.

Adopting the Sheriff’s suggestion that the Court should simply issue a blanket order barring Mr. Robinson from appearing in person at any court appearance except those that the Sheriff vaguely describes as “evidentiary and critical-stage hearings” would not be a voluntary waiver of the right to be present at all stages of the criminal proceedings. And such an order would “frustrate the fairness of the proceedings” and would also violate other important constitutional rights. That is true for several reasons. First, this is a capital case and under the Eighth Amendment and its Utah constitutional counterpart, “[w]hen a defendant’s life is at stake, the Court has been particularly sensitive to ensure that every safeguard is observed.” *Gregg v. Georgia*, 428 U.S. 153, 187 (1976). One such safeguard is the constitutional right to appear and defend in person, which has been described by the Utah Supreme Court as a “sacred right.” *Aikers*, 51 P.2d at 1053.

Second, excluding Mr. Robinson, but not the rest of the world, from personally attending any court proceedings in a case in which the State is seeking to end *his* life, because it would be costly and inconvenient, smacks of fundamental unfairness and is an affront to the dignity and decorum of the courtroom. A courtroom “is more than a location with seats for a judge, jury, witnesses, defendant, prosecutor, defense counsel and public observers[.]” *Estes* 381 U.S. at 561 (1965) (Warren, C.J., concurring). The courtroom setting provides “a dignity essential” to the process of criminal adjudication. *Id.* “Isolating a defendant from that setting during what may be the most decisive moment of his or her life clashes with the judge’s duty to acknowledge the

humanity of even a convicted felon.” *People v. Heller*, 891 N.W.2d 541, 544 (Mich. Ct. App. 2016) (when the defendant “speaks through a microphone from a remote location,” his absence from [a] sentencing hearing nullifie[s] the dignity of the proceeding and its participants, rendering it fundamentally unfair.”) (collecting other cases on this point).

Third, requiring Mr. Robinson to make court appearances from a jail located far from his lawyers in the courtroom “implicates [his] right to confer with counsel” because it would “require[e] him to communicate to others in the courtroom with a corrections officer standing near him, which [would] discourage[e] him from discussing confidential matters relevant to his case with his counsel.” *State v. Ferguson*, 568 P.3d 314, 321 (Wash. Ct. App. 2025). *Accord*, *Heller*, 891 N.W.2d at 318 (“Undoubtedly, two-way interactive video technology saves courts money and time, and it dramatically lessens security concerns. But ... [s]entencing by video dehumanizes the defendant who participates from a jail location, unable to privately communicate with his or her counsel and likely unable to visualize all the participants in the courtroom.”).

Fourth, in this particular and unique capital case, disallowing Mr. Robinson’s appearance at all of the court proceedings he wishes to attend would frustrate the fairness of the proceedings. State and federal law enforcement officers, including the Utah County Sheriff and the County Attorney have already engaged in conduct which prejudices Mr. Robinson’s fundamental constitutional right to a fair trial by an impartial jury. Mr. Robinson must be accorded a corresponding and absolutely necessary right to rebut that prejudice by the *lawful*, easily achievable, and minimally intrusive means of allowing him to be physically present in the courtroom, in street clothes, and without shackles, so that he can be treated as, and perceived to be, the human being that he is, and not a chained animal.

As the Supreme Court explained in *Turner v. Murray*, 476 U.S. 28, 35–36 (1986), “[t]he risk of ... prejudice infecting a capital sentencing proceeding is especially serious in light of the complete finality of the death sentence.” Here as in *Turner*, this Court should find that the risk that prejudice may “infec[t] [Mr. Robinson’s trial and] capital sentencing [procedure] is unacceptable in light of the” ease with which that risk could be minimized. *See also Gannett Co. v. DePasquale*, 443 U.S. 368, 378 (1979) (“To safeguard the due process rights of the accused, a trial judge has an affirmative constitutional duty to minimize the effects of prejudicial pretrial publicity. And because of the Constitution’s pervasive concern for these due process rights, a trial judge may surely take protective measures even when they are not strictly and inescapably necessary”).

Finally, the Sheriff’s proposal incorrectly assumes that there are no constitutional restraints on the Court’s power to order Mr. Robinson to make his court appearances from jail, and that the only relevant inquiry is whether a blanket order for such appearances can be made under Utah R. Crim. P. 17.5(b). While no Utah case has yet addressed the issue, the Washington Supreme Court recently held that criminal defendants are constitutionally entitled to an individualized inquiry before they can be required to appear from an in-court holding cell. *See State v. Luthi*, 549 P.3d 712, 718-20 (Wash. 2024) (en banc).

V. MR. ROBINSON AGREES WITH THE SHERIFF THAT THIS COURT SHOULD LIMIT VIDEO AND PHOTOGRAPHIC COVERAGE OF COURT PROCEEDINGS, SO THAT HIS PHYSICAL APPEARANCE IS NO LONGER THE SUBJECT OF INTEREST AND HIS RIGHT TO A FAIR TRIAL BY AN IMPARTIAL JURY IS FULLY PROTECTED.

For reasons outlined in Point I, *supra*, and because of the extraordinary nature of this capital case and the need to ensure a fair and impartial jury that may ultimately decide whether he lives or dies, Mr. Robinson agrees with the Sheriff that the Court should limit media

coverage, or video and photographic coverage, at the least, so defendant's physical appearance is no longer the subject of interest and he has some chance of securing a fair and impartial jury.⁸

The United States Supreme Court has stated that while the First and Sixth Amendments guarantee the right of the press to attend a trial and report on what they have observed, the Fourteenth Amendment Due Process Clause assures each defendant the fundamental right to a fair trial. *Chandler v. Florida*, 449 U.S. 560, 569, 571 (1981). There is no *per se* prohibition or allowance of electronic media coverage during judicial proceedings. *Id.* at 569; *Estes*, 381 U.S. at 532.

Federal courts have universally found that restrictions on videotaping and cameras do not implicate the First Amendment guarantee of public access. *See, e.g., Rice v. Kempker*, 374 F.3d 675, 678–79 (8th Cir. 2004) (collecting numerous cases so holding). *See also Sheppard v. Maxwell*, 384 U.S. at 358 (“As we stressed in *Estes*, the presence of the press at judicial proceedings must be limited when it is apparent that the accused might otherwise be prejudiced or disadvantaged. Bearing in mind the massive pretrial publicity, the judge should have adopted stricter rules governing the use of the courtroom by newsmen, as Sheppard’s counsel requested.”)

The Utah Supreme Court has stated that “the media has a right of access to criminal proceedings, but this right is not absolute and is subject to exceptions. *State v. Archuleta*, 857 P.2d 234, 237 (Utah 1993); *Kearns–Tribune Corp. v. Lewis*, 685 P.2d 515, 522 (Utah 1984). The

⁸⁸ The Sheriff suggests that the Court is already heading down that path because it has prohibited video coverage of the October 30, 2025, court appearance. *Resp.* at 18-19. The Sheriff is in error as on September 29, 2025, the Court signed an order allowing the televising of the October 30, 2025 court appearance. Doc 66. In light of this order, the State should be required forthwith to respond to the Court’s October 14, 2025, order that the state (not the Sheriff) address defendant’s request for an interim order allowing him to appear in civilian clothes and without shackles at the October 30, 2025 hearing pending the final determination of Mr. Robinson’s present motion.

right of access “must be weighed against other considerations, including the accused’s Sixth Amendment right to a fair trial.” *Archuleta*, 857 P.2d at 237. A court may restrict “access altogether where necessary to assure that the defendant receives a fair trial[.]” *Kearns–Tribune*, 685 P.2d at 522.” *State v. Arguelles*, 2003 UT 1, ¶¶ 95-102, 63 P.3d 731.

The Court thus has ample authority to restrict the media in this case and should prohibit any further still camera, photography, or video coverage of any proceedings “[t]o safeguard the due process rights of the accused”, and to discharge its “affirmative constitutional duty to minimize the effects of prejudicial pretrial publicity.” *Gannett*, 443 U.S. at 378.

CONCLUSION

Based upon the foregoing, the Court should order relief consistent with Mr. Robinson’s motion.

DATED this 22nd day of October, 2025.

Respectfully submitted,

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/ Michael N. Burt
Michael N. Burt

/s/ Richard G. Novak
Richard G. Novak

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 22nd day of October, 2025, which served all attorneys of record.

/s/ Staci Visser

Addendum H

**DISTRICT COURT OF THE STATE OF UTAH
FOURTH JUDICIAL DISTRICT
UTAH COUNTY**

STATE OF UTAH	ORDER TO TRANSPORT
VS	Case Number: 251403576
TYLER ROBINSON	Judge Tony F Graf, Jr.

It is hereby ordered that Tyler Robinson be transported for a Preliminary Hearing on
Friday, October 24, 2025 at 3:00 PM before the Honorable Judge Tony F Graf. The hearing
will be held in Courtroom 4B of the Provo Fourth Judicial District Courthouse.

DATED this 21th day of October, 2025

UTAH FOURTH DISTRICT COURT


Judge Tony Graf
Fourth District Court

STAMP USED AT DIRECTION OF JUDGE



Addendum I

(Sealed)

Addendum J

The Order of the Court is stated below:

Dated: October 01, 2025

01:04:06 PM

At the direction of:

/s/ TONY F GRAF JR
District Court Judge

by

/s/ TREENA HANSEN
District Court Clerk



FOURTH JUDICIAL DISTRICT - PROVO DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH, Plaintiff,	MINUTES TELEPHONIC CONFERENCE.
vs. TYLER JAMES ROBINSON, Defendant.	Case No: 251403576 FS Judge: TONY F GRAF JR Date: September 26, 2025

PRESENT

Clerk: treenah

Prosecutor: CHAD GRUNANDER

Defendant not present

Defendant's Attorney(s): KATHRYN NESTER

DEFENDANT INFORMATION

Date of birth: April 16, 2003

Audio

Tape Number: Off Record

CHARGES

1. AGGRAVATED MURDER - 1st Degree Felony
2. FELONY DISCHARGE OF FIREARM - CAUSING SERIOUS BODILY INJURY - 1st Degree Felony
3. OBSTRUCTION OF JUSTICE - CAPITAL/FIRST DEGREE FELONY CONDUCT - 2nd Degree Felony
4. OBSTRUCTION OF JUSTICE - CAPITAL/FIRST DEGREE FELONY CONDUCT - 2nd Degree Felony
5. TAMPERING WITH A WITNESS - 3rd Degree Felony
6. TAMPERING WITH A WITNESS - 3rd Degree Felony
7. VIOLENT OFFENSE COMMITTED IN PRESENCE OF A CHILD - Class A Misdemeanor

HEARING

This matter comes before the Court for an unscheduled conference at the request of counsel.
This proceeding is not recorded by FTR or Webex.

Counsel addressed the Court regarding issues and concerns related to Mr. Robinson's appearance in open court.

A discussion ensued regarding counsel's concerns, including matters of safety.

Court addresses counsel and discloses prior employment with the County Attorney's Office.

Counsel affirmed that no conflict exists.

In anticipation of motions being filed concerning the defendant's appearance and in consideration of the late hour, counsel have agreed that Mr. Robinson will appear virtually for the hearing scheduled on Monday, September 29, 2025, at 10:00 a.m.

The Court will notify the appropriate agencies of this change.

End Of Order - Signature at the Top of the First Page

Addendum K

FOURTH JUDICIAL DISTRICT - PROVO DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH vs. TYLER JAMES ROBINSON

CASE NUMBER 251403576 State Felony

CHARGES

Charge 1 - 76-5-202 - AGGRAVATED MURDER - 1st Degree Felony
Offense Date: September 10, 2025
Location: Utah County
Attributes: Death/Serious Injury.
Mandatory Appearance

Charge 2 - 76-11-210(2)+(3C) - FELONY DISCHARGE OF FIREARM - CAUSING SERIOUS
BODILY INJURY - 1st Degree Felony
Offense Date: September 10, 2025
Location: Utah County
Attributes: Death/Serious Injury.
Mandatory Appearance

Charge 3 - 76-8-306(2)+(3A) - OBSTRUCTION OF JUSTICE - CAPITAL/FIRST DEGREE
FELONY CONDUCT - 2nd Degree Felony
Offense Date: September 10, 2025
Location: Utah County
Mandatory Appearance

Charge 4 - 76-8-306(2)+(3A) - OBSTRUCTION OF JUSTICE - CAPITAL/FIRST DEGREE
FELONY CONDUCT - 2nd Degree Felony
Offense Date: September 10, 2025
Location: Utah County
Mandatory Appearance

Charge 5 - 76-8-508 - TAMPERING WITH A WITNESS - 3rd Degree Felony
Offense Date: September 10, 2025
Location: Utah County
Mandatory Appearance

Charge 6 - 76-8-508 - TAMPERING WITH A WITNESS - 3rd Degree Felony
Offense Date: September 11, 2025
Location: Utah County
Mandatory Appearance

Charge 7 - 76-3-203.10(2) - VIOLENT OFFENSE COMMITTED IN PRESENCE OF A CHILD -
Class A Misdemeanor
Offense Date: September 10, 2025
Location: Utah County
Mandatory Appearance

CURRENT ASSIGNED JUDGE
TONY F GRAF JR

PARTIES

Plaintiff - STATE OF UTAH
Represented by: JEFFREY GRAY
Represented by: CHAD GRUNANDER
Represented by: RYAN MCBRIDE
Represented by: CHRISTOPHER BALLARD

Defendant - TYLER JAMES ROBINSON
Represented by: DEFENDER PUBLIC
Represented by: KATHRYN NESTER
Represented by: STACI VISSER

DEFENDANT INFORMATION

Defendant Name: TYLER JAMES ROBINSON
Offense Tracking Number: 70090584
Date of Birth: April 16, 2003
Law Enforcement Agency: ST BUREAU INVESTIGAT
LEA Case Number: 000000
Officer Name: BRIAN DAVIS
Prosecuting Agency: UTAH COUNTY
Agency Case Number: 000000
Violation Date: 09-10-2025

ACCOUNT SUMMARY

Total Revenue Amount Due:	0.75
Amount Paid:	0.75
Amount Credit:	0.00
Balance:	0.00

REVENUE DETAIL - TYPE: COPY FEE

Amount Due:	0.25
Amount Paid:	0.25
Amount Credit:	0.00
Balance:	0.00

REVENUE DETAIL - TYPE: COPY FEE

Amount Due:	0.50
Amount Paid:	0.50
Amount Credit:	0.00
Balance:	0.00

REVENUE DETAIL - TYPE: ELEC STORAGE MEDIUM

Fee Waiver Status - Government

Original Amount Due:	15.00
Amended Amount Due:	0.00
Amount Paid:	0.00
Amount Credit:	0.00
Balance:	0.00

Account Adjustments Sum To Date	Amount Reason
2025-10-06	-15.00 Government filer

CASE NOTE

PROCEEDINGS

09-15-2025 Filed order: Request And Order For Electronic Media Coverage Of Court Proceedings
Judge TONY F GRAF JR
Signed September 15, 2025

09-16-2025 Filed: INFORMATION

09-16-2025 Case filed by efiler

09-16-2025 Filed: From an Information

09-16-2025 Judge TONY F GRAF JR assigned.

09-16-2025 WEBEX INITIAL APPEARANCE scheduled on September 16, 2025 at 03:00 PM in 4th Fl, Courtroom 4B with Judge TONY F GRAF JR

09-16-2025 Filed: Probable Cause Affidavit

09-16-2025 Filed: Public Safety Assessment Report

09-16-2025 Filed: Bail Order

09-16-2025 Filed: Return of Electronic Notification

09-16-2025 Filed: Acknowledgment of Firearm Restriction

09-16-2025 Filed: Order (Proposed) Pretrial Protective Order

09-16-2025 Filed: Return of Electronic Notification

09-16-2025 **** PRIVATE **** Filed: Affidavit of Indigency

09-16-2025 Filed: State's Notice of Intent to Seek the Death Penalty

09-16-2025 Filed: Return of Electronic Notification

09-16-2025 Modified: IN PERSON WAIVER HEARING scheduled on September 29, 2025 at 10:00 AM in 4th Fl, Courtroom 4B with Judge TONY F GRAF JR

09-16-2025 Minute Entry - INITIAL APPEARANCE
Judge: TONY F GRAF JR
PRESENT
Clerk: veronics
Prosecutor: GRUNANDER, CHAD
Defendant Present
The defendant is in the custody of the Utah County Jail
Audio
Tape Number: 4B FTR/WBX Tape Count: 3:01-3:14
INITIAL APPEARANCE
A copy of the Information is given to the defendant.
The Information is read.
Advised of charges and penalties.
The defendant is advised of right to counsel.
HEARING
This matter comes before the court for an initial appearance.
Mr. Greg Skordas appear on behalf of the county, but does not enter an appearance in this case.
Mr. Skordas addresses the court regarding the appointment of Rule 8 qualified counsel.
The court appoints the public defender's office and orders the Rule 8 qualifications of the appointed attorney(s) be filed prior to the next hearing.

Mr. Grunander appears for the State and notifies the court that a notice of intent has now been filed with the court.
Mr. Grunander also addresses the pretrial protective order and request that the court grant the protective order.
The court grants the request and will sign the order.
APPOINTMENT OF COUNSEL

Court finds the defendant indigent and appoints DEFENDER PUBLIC to represent the defendant.
Appointed Counsel:
Name: DEFENDER PUBLIC
Address: 51 S UNIVERSITY AVE STE 206
City: PROVO UT 84601
Phone: (801)852-1070

Remote Appearance
WEBEX WAIVER HEARING is scheduled.

Date: 09/29/2025
Time: 10:00 a.m.
Before Judge: TONY F GRAF JR
[Courts Website: https://legacy.utcourts.gov/cal/](https://legacy.utcourts.gov/cal/)

CUSTODY
The defendant is remanded to the custody of the Utah County Jail.
This hearing will not take place at the courthouse. It will be conducted remotely. Contact the court to provide your current email address. If you do not have access to a phone or other electronic device to appear remotely, notify the court.
UCJA Rule 4-401.02: court proceedings, including electronic proceedings, may NOT be recorded, photographed, or transmitted. Failure to comply with this prohibition may be treated as contempt of court, punishable by fine and time in jail.

09-16-2025 Filed: Request for Designation of Victim Representative
09-16-2025 Filed: Return of Electronic Notification
09-16-2025 Filed order: Order Pretrial Protective Order
Judge TONY F GRAF JR
Signed September 16, 2025
09-16-2025 Filed: Return of Electronic Notification
09-17-2025 Filed: Return of Electronic Notification
09-17-2025 Filed order: Request And Order For Electronic Media Coverage Of Court Proceedings
Judge TONY F GRAF JR
Signed September 17, 2025
09-22-2025 Filed order: INITIAL APPEARANCE
Judge TONY F GRAF JR
Signed September 22, 2025
09-22-2025 Filed order: Order for Court Reporter
Judge TONY F GRAF JR
Signed September 22, 2025
09-22-2025 Filed order: Protection Order RE: Pre-Trial and Trial Publicity
Judge TONY F GRAF JR
Signed September 22, 2025
09-23-2025 Filed: Return of Electronic Notification
09-23-2025 Filed protective order: Pre-Trial Protective Order
Judge TONY F GRAF JR
Signed September 23, 2025
09-23-2025 Note: Pre-Trial Protective Order Service Date : 09-23-2025 03:08:00
09-23-2025 NOTICE for Case 251403576 ID 25729178
Judge: TONY F GRAF JR
In-person Appearance

IN PERSON WAIVER HEARING is re-scheduled.
Date: 09/29/2025
Time: 10:00 a.m.
Location: 4th Fl, Courtroom 4B
Before Judge: TONY F GRAF JR
FOURTH DISTRICT COURT
137 N FREEDOM BLVD
PROVO, UT 84601
The reason for the change is Court Ordered
.
The court modifies this hearing to be conducted in-person
in courtroom 4B.
UCJA Rule 4-401.02: court proceedings, including electronic
proceedings, may NOT be recorded, photographed, or
transmitted. Failure to comply with this prohibition may be
treated as contempt of court, punishable by fine and time
in jail.

09-23-2025 Note: IN PERSON WAIVER HEARING calendar modified.
09-23-2025 Filed: Notice for Case 251403576 FS Judge: TONY F GRAF JR
09-24-2025 Filed: Return of Electronic Notification
09-24-2025 Filed order: Order To Transport
Judge TONY F GRAF JR
Signed September 24, 2025
09-24-2025 Filed order: Request And Order For Electronic Media Coverage Of
Court Proceedings
Judge TONY F GRAF JR
Signed September 23, 2025
09-24-2025 Filed order: Standing Decorum Order
Judge TONY F GRAF JR
Signed September 24, 2025
09-24-2025 Filed return: Return of service Pretrial Protective Order
Party Served: ROBINSON, TYLER JAMES
Service Type: Personal
Service Date: September 23, 2025
Garnishee:
09-24-2025 Filed: Protective Order Acknowledgment of Firearm Restriction
09-25-2025 Filed: Return of Electronic Notification
09-25-2025 Filed: Affidavit/Declaration Rule 8 Declaration of Kathryn N.
Nester
09-25-2025 Filed: Affidavit/Declaration Rule 8 Declaration of Michael N
Burt
09-25-2025 Filed: Affidavit/Declaration Rule 8 Declaration of Richard G.
Novak
09-25-2025 Filed: Motion Pro Hac Vice to Admit Michael N. Burt
Filed by: TYLER JAMES ROBINSON
09-25-2025 Filed: Motion Pro Hac Vice to Admit Richard G. Novak
Filed by: TYLER JAMES ROBINSON
09-25-2025 Filed: Order (Proposed) Findings of Fact and Conclusions of Law
Regarding Appointment of Rule 8 Counsel
09-25-2025 Filed: Order (Proposed) Admitting Michael N. Burt Pro Hac Vice
09-25-2025 Filed: Order (Proposed) Admitting Richard G. Novak Pro Hac Vice
09-25-2025 Filed: Return of Electronic Notification
09-26-2025 Minute Entry - TELEPHONIC CONFERENCE.
Judge: TONY F GRAF JR
PRESENT

Clerk: treenah
Prosecutor: CHAD GRUNANDER
Defendant not present
Defendant's Attorney(s): KATHRYN NESTER
Audio
Tape Number: Off Record

HEARING

This matter comes before the Court for an unscheduled conference at the request of counsel.
This proceeding is not recorded by FTR or Webex.

Counsel addressed the Court regarding issues and concerns related to Mr. Robinson s appearance in open court.
A discussion ensued regarding counsels concerns, including matters of safety.
Court addresses counsel and discloses prior employment with the County Attorney's Office.
Counsel affirmed that no conflict exists.

In anticipation of motions being filed concerning the defendants appearance and in consideration of the late hour, counsel have agreed that Mr. Robinson will appear virtually for the hearing scheduled on Monday, September 29, 2025, at 10:00 a.m.

The Court will notify the appropriate agencies of this change.

- 09-26-2025 Filed: Return of Electronic Notification
- 09-26-2025 Filed order: Order Admitting Michael N. Burt Pro Hac Vice
Judge TONY F GRAF JR
Signed September 26, 2025
- 09-27-2025 Filed order: Order Findings of Fact and Conclusions of Law
Regarding Appointment of Rule 8 Counsel
Judge TONY F GRAF JR
Signed September 27, 2025
- 09-27-2025 Filed order: Order Admitting Richard G. Novak Pro Hac Vice
Judge TONY F GRAF JR
Signed September 27, 2025
- 09-27-2025 Filed: Return of Electronic Notification
- 09-27-2025 Filed: Return of Electronic Notification
- 09-28-2025 Filed: Supplemental Exhibit to Motion and Consent of Sponsoring
Local Counsel for Pro Hac Vice Admission of Out of State
Counsel Michael M. Burt
- 09-28-2025 Filed: Supplemental Exhibit to Motion and Consent of Sponsoring
Local Counsel for Pro Hac Vice Admission of Out of State
Counsel Richard G. Novak
- 09-28-2025 Filed: Supplemental Exhibit to Rule 8 Declaration of Michael N.
Burt
- 09-28-2025 Filed: Supplemental Exhibit to Rule 8 Declaration of Richard G.
Novak
- 09-28-2025 Filed: Return of Electronic Notification
- 09-29-2025 Cancelled: IN PERSON WAIVER HEARING scheduled on October 30,
2025 at 10:00 AM in 4th Fl, Courtroom 4B with Judge TONY F GRAF
JR
- 09-29-2025 Minute Entry - WAIVER HEARING
Judge: TONY F GRAF JR
PRESENT
Clerk: treenah

Prosecutor: JEFFREY GRAY
Prosecutor: RYAN MCBRIDE
Prosecutor: LAUREN HUNT
Prosecutor: CHRISTOPHER BALLARD

Defendant Present

The defendant is in the custody of the Utah County Jail

Defendant's Attorney(s): KATHRYN NESTER

Audio

Tape Number: 4B Webex/FTR Tape Count: 10:02-10:12

HEARING

This matter comes before court for a waiver hearing. This hearing is being recorded by FTR and Webex.

Counsel make appearances. Michael Burt and Richard Novak appear Pro Hac Vice for the Defendant. The court addresses counsel on the appearance of Mr. Burt and Mr. Novak and finds that the attorneys meet and exceed the requirements under Rule 8.

Court inquires as to the posture of today's hearing.

Mr. Grunander address the court regarding Rule 16 and states that discovery will be sent once Ms. Nester makes the request.

Mr. Grunander also address the court on the protection order and discusses the issues of ongoing witnesses coming to light.

Ms. Nester addresses court. The court states it understands that there may be more witnesses as the investigation proceeds and asked counsel to share the order with witness as they become aware.

Ms. Nester addresses the court and states that it is not the intent of the Defendant to waive his right to the preliminary hearing. Ms. Nester also informs the court that she will not be requesting a detention hearing at this time but will keep the court informed as to the scheduling of the preliminary hearing and filing a motion to address detention.

Court address counsel and all patrons on the courts objective to preserve the rights of the Defendant and Victims.

Court address counsel on the next hearing and states that it is the courts preference for an in person hearing. Ms. Nester agrees and would also like the next hearing to be in person with the Defendant present. The Court schedules the next court date.

In-person Appearance

IN PERSON WAIVER HEARING is scheduled.

Date: 10/30/2025

Time: 10:00 a.m.

Location: 4th Fl, Courtroom 4B

Before Judge: TONY F GRAF JR

FOURTH DISTRICT COURT

137 N FREEDOM BLVD

PROVO, UT 84601

UCJA Rule 4-401.02: court proceedings, including electronic proceedings, may NOT be recorded, photographed, or transmitted. Failure to comply with this prohibition may be treated as contempt of court, punishable by fine and time in jail.

09-29-2025 Filed order: Order To Transport

Judge TONY F GRAF JR

Signed September 29, 2025

09-29-2025 Fee Account created Total Due: 0.25

09-29-2025 COPY FEE Payment Received: 0.25

Note: 1.00 cash tendered. 0.75 change given.

09-29-2025 Filed order: Request And Order For Electronic Media Coverage Of Court Proceedings
Judge TONY F GRAF JR
Signed September 29, 2025

09-29-2025 Filed order: Request And Order For Electronic Media Coverage Of Court Proceedings
Judge TONY F GRAF JR
Signed September 29, 2025

09-30-2025 Filed: Return of Electronic Notification

09-30-2025 Filed: Return of Electronic Notification

09-30-2025 Filed: Appearance of Counsel/Notice of Limited Appearance
Appearance of Counsel

09-30-2025 Filed: Appearance of Counsel/Notice of Limited Appearance
Appearance of Counsel

09-30-2025 Filed: Appearance of Counsel/Notice of Limited Appearance
Appearance of Counsel

09-30-2025 Filed: Appearance of Counsel/Notice of Limited Appearance
Appearance of Counsel

09-30-2025 Filed: Appearance of Counsel/Notice of Limited Appearance
Appearance of Counsel

09-30-2025 Filed: Return of Electronic Notification

09-30-2025 PHONE CONFERENCE scheduled on September 30, 2025 at 11:48 AM in 8th Fl, Courtroom 8B with Judge TONY F GRAF JR

09-30-2025 Minute Entry - TELEPHONIC CONFERENCE
Judge: TONY F GRAF JR
PRESENT
Clerk: treenah
Prosecutor: CHAD GRUNANDER
Prosecutor: RYAN MCBRIDE
Prosecutor: CHRISTOPHER BALLARD
Defendant not present
Defendant's Attorney(s): KATHRYN NESTER
Audio
Tape Number: 8B FTR Tape Count: 11:15-11:32
HEARING
This matter comes before the court for a telephonic conference. The hearing is being recorded by FTR.
Counsel are present along with Michael Burt appearing pro hac vice.

Court addresses counsel on issues.
Counsel respond and agree that a minute entry will suffice supplementing the record regarding the telephonic conference conducted on Friday, September 26, 2025 at around 5:30 p.m.

The clerk will prepare a minute entry consistant with the dicussion of the court and counsel for the telephonic conference held on Friday, September 26, 2025 at around 5:30 p.m.

09-30-2025 Filed: Request for Discovery

09-30-2025 Filed: Return of Electronic Notification

10-01-2025 Filed: Return of Electronic Notification

10-01-2025 Filed order: TELEPHONIC CONFERENCE.
Judge TONY F GRAF JR
Signed October 01, 2025

10-01-2025 Filed order: TELEPHONIC CONFERENCE

Judge TONY F GRAF JR
Signed October 01, 2025

10-02-2025 Filed: Return of Electronic Notification
10-03-2025 Filed: Return of Electronic Notification
10-03-2025 Fee Account created Total Due: 0.50
10-03-2025 COPY FEE 0.00
10-04-2025 Filed: Return of Electronic Notification
10-06-2025 Filed: Request for Audio Recording Request for Copy of Audio Recording
10-06-2025 Fee Account created Total Due: 15.00
10-06-2025 Filed: Return of Electronic Notification
10-07-2025 Filed: Return of Electronic Notification
10-08-2025 Filed: Copy of Video/Audio Record (completed)
10-08-2025 Filed: Motion to Preserve Evidence
Filed by: TYLER JAMES ROBINSON
10-08-2025 Filed: Order (Proposed) Granting Motion to Preserve Evidence
10-08-2025 Filed: Return of Electronic Notification
10-09-2025 Filed: Return of Electronic Notification
10-09-2025 Filed: Motion Permission to File Overlength Motion to Appear in Civilian Clothes and Without Restraints
Filed by: TYLER JAMES ROBINSON
10-09-2025 Filed: Request/Notice to Submit Motion for Permission to File Overlength Motion to Appear in Civilian Clothes and Without Restraints
10-09-2025 Filed: Order (Proposed) Granting Motion for Permission to File Overlength Motion to Appear in Civilian Clothes and Without Restraints
10-09-2025 Filed: Return of Electronic Notification
10-09-2025 Filed: Motion (Hearing Requested) to Appear at All In-Person Proceedings in Civilian Clothing and Without Restraints and Memorandum in Support
Filed by: TYLER JAMES ROBINSON
10-09-2025 Filed: Order (Proposed) Temporary Order Allowing Appearance in Civilian Clothing and Without Restraints
10-09-2025 Filed: Return of Electronic Notification
10-10-2025 Filed order: Order Granting Motion for Permission to File Overlength Motion to Appear in Civilian Clothes and Without Restraints
Judge TONY F GRAF JR
Signed October 10, 2025
10-10-2025 Filed: Return of Electronic Notification
10-13-2025 Filed: Appearance of Counsel/Notice of Limited Appearance Appearance of Counsel
10-13-2025 Filed: Return of Electronic Notification
10-13-2025 Filed: Request/Notice to Submit Stipulated Discovery Protective Order
10-13-2025 Filed: Motion for Discovery Protective Order (Stipulated)
Filed by: STATE OF UTAH
10-13-2025 Filed: Order (Proposed) Discovery Protective Order
10-13-2025 Filed: Return of Electronic Notification
10-13-2025 Filed: Certificate of Service
10-13-2025 Filed: Return of Electronic Notification
10-14-2025 Filed order: Interim Order Defendant's Motion to Appear in Civilian Clothing and Without Restraints
Judge TONY F GRAF JR
Signed October 14, 2025

10-14-2025 Filed: Appearance of Counsel/Notice of Limited Appearance
Appearance of Counsel (Richard Novak)

10-14-2025 Filed: Return of Electronic Notification

10-15-2025 Filed: Return of Electronic Notification

10-15-2025 Filed order: Order Discovery Protective Order
Judge TONY F GRAF JR
Signed October 15, 2025

10-15-2025 Filed: Return of Electronic Notification

10-20-2025 **** PRIVATE **** Filed: Response To Defendant's Motion To
Appear At All In-Person Proceedings In Civilian Clothing And
Without Restraints

10-20-2025 Filed: Motion to Classify as Private the Response to Defendant
s Motion to Appear in Civilian Clothing
Filed by: STATE OF UTAH

10-20-2025 Filed: Order (Proposed) Granting Motion to Classify as Private
the Response to Defendant s Motion to Appear in Civilian
Clothing

10-20-2025 Filed: Return of Electronic Notification

10-20-2025 Filed order: Order Granting Motion to Classify as Private the
Response to Defendant s Motion to Appear in Civilian Clothing
Judge TONY F GRAF JR
Signed October 20, 2025

10-20-2025 Filed: Return of Electronic Notification

10-20-2025 Filed order: Order Granting Motion to Preserve Evidence
Judge TONY F GRAF JR
Signed October 20, 2025

10-20-2025 Filed: Return of Electronic Notification

10-21-2025 Filed: Return of Electronic Notification

10-21-2025 Filed: Motion to Strike Response to Defendant s Motion to
Appear at All In-Person Proceedings in Civilian Clothing and
Without Restraints
Filed by: TYLER JAMES ROBINSON

10-21-2025 Filed: Return of Electronic Notification

10-21-2025 Filed order: Order To Transport
Judge TONY F GRAF JR
Signed October 21, 2025

10-22-2025 Filed: Return of Electronic Notification

10-22-2025 CLOSED/SEALED HEARING scheduled on October 24, 2025 at 03:00 PM
in 4th FL, Courtroom 4B with Judge TONY F GRAF JR

10-22-2025 Filed: Opposition to Defendant s Opposition to the State of
Utah s Motion Under Utah Rule of Criminal Procedure 17.5

10-22-2025 Filed: Motion to Set Aside October 20, 2025, Order Granting
Motion to Preserve Evidence
Filed by: STATE OF UTAH

10-22-2025 Filed: Response to Defendant s Motion to Preserve Evidence

10-22-2025 Filed: Opposition to Motion to Strike Response to Defendant s
Motion to Appear at All In-Person Proceedings in Civilian
Clothing and Without Restraints

10-22-2025 Filed: Return of Electronic Notification

10-22-2025 Filed: Return of Electronic Notification

10-22-2025 Filed: Reply in Support of Motion re Restraints and Civilian
Clothing

10-22-2025 Filed: Motion for Permission to File Overlength Reply
Filed by: TYLER JAMES ROBINSON

10-22-2025 Filed: Request/Notice to Submit Request to Submit Motion for
Permission to File Overlength Reply

10-22-2025 Filed: Order (Proposed) Order Granting Permission to File Overlength Reply

10-22-2025 Filed: Return of Electronic Notification

10-23-2025 Filed: Return of Electronic Notification

10-23-2025 WEBEX RULING HEARING scheduled on October 27, 2025 at 01:00 PM in 8th Fl, Courtroom 8B with Judge TONY F GRAF JR

10-23-2025 Filed order: Order Granting Permission to File Overlength Reply
Judge TONY F GRAF JR
Signed October 23, 2025

10-23-2025 Filed: Return of Electronic Notification

10-23-2025 Filed: Reply in Support of Motion to Strike Response to Defendant's Motion to Appear at all In-Person Proceedings in Civilian Clothing and Without Restraints

10-23-2025 Filed: Return of Electronic Notification

10-23-2025 Filed: Request and Order for Electronic Media Coverage of Court Proceedings

10-24-2025 Filed: Return of Electronic Notification

10-24-2025 Filed: Updated Request and Order for Electronic Media Coverage of Court Proceedings

10-24-2025 ***** SEALED ***** Filed: Minutes Sealed/Closed Hearing

10-25-2025 Filed: Return of Electronic Notification

10-27-2025 Filed: State's Notice of Open File Policy and Invitation to Inspect Physical Evidence

10-27-2025 Filed: Return of Electronic Notification

10-27-2025 Filed order: Ruling And Order Granting Defendant's Motion To Strike and Granting In Part And Denying In Part Defendant's Motion To Appear In Civilian Clothing And Without Restraints
Judge TONY F GRAF JR
Signed October 27, 2025

10-27-2025 Filed order: Standing Decorum Order, Effective October 30, 2025
Judge TONY F GRAF JR
Signed October 27, 2025

10-27-2025 Filed order: Request And Order For Electronic Media Coverage of Court Proceedings
Judge TONY F GRAF JR
Signed October 27, 2025

10-27-2025 Filed: Other - Not Signed Order (Proposed) Temporary Order Allowing Appearance in Civilian Clothing and Without Restraints

10-27-2025 Filed: Return of Electronic Notification

10-27-2025 Filed: Motion to Extend Time, Stipulated
Filed by: TYLER JAMES ROBINSON

10-27-2025 Filed: Request/Notice to Submit Stipulated Motion to Extend Time

10-27-2025 Filed: Order (Proposed) Granting Stipulated Motion to Extend Time

10-27-2025 Filed: Return of Electronic Notification

10-28-2025 Filed: Return of Electronic Notification

10-28-2025 Filed order: Order Granting Stipulated Motion to Extend Time
Judge TONY F GRAF JR
Signed October 28, 2025

10-28-2025 Filed: Return of Electronic Notification

10-28-2025 IN PERSON ORAL ARGUMENT scheduled on January 16, 2026 at 01:00 PM in 8th Fl, Courtroom 8B with Judge TONY F GRAF JR

10-28-2025 IN PERSON ORAL ARGUMENT scheduled on January 30, 2026 at 01:00 PM in 8th Fl, Courtroom 8B with Judge TONY F GRAF JR

10-28-2025 Minute Entry - RULING ON THE RECORD

Judge: TONY F GRAF JR

PRESENT

Clerk: treenah

Prosecutor: CHRISTOPHER BALLARD

Prosecutor: CHAD GRUNANDER

Defendant Present

The defendant is in the custody of the Utah County Jail

Defendant's Attorney(s): KATHRYN NESTER

Defendant's Attorney(s): STACI VISSER

Audio

Tape Number: 4B FTR/Webex Tape Count: 1:01-1:19

HEARING

This matter comes before the court for a ruling on the record on the pending motion to strike and motion to appear in street clothes and without restraints.

The court addresses counsel and parties.

Court gives findings and grants the motion to strike.

As to the motion for the defendant to appear in street clothes and with out restraints, the court grants in part and denies in part.

Defendant will be allowed to appear in street clothes but will not be unrestrained.

Court addresses modification to the decorm order and orders that for any further hearing where the Media is present, they will not be allowed to video the Defendant coming and going from the courtroom and will not be allowed to record the defendant in restraints.

Court gives next hearing date. The hearing will be conducted in person.

In-person Appearance

IN PERSON ORAL ARGUMENT is scheduled.

Date: 01/16/2026

Time: 01:00 p.m.

Location: 8th Fl, Courtroom 8B

Before Judge: TONY F GRAF JR

FOURTH DISTRICT COURT

137 N FREEDOM BLVD

PROVO, UT 84601

IN PERSON ORAL ARGUMENT is scheduled.

Date: 01/30/2026

Time: 01:00 p.m.

Location: 8th Fl, Courtroom 8B

Before Judge: TONY F GRAF JR

FOURTH DISTRICT COURT

137 N FREEDOM BLVD

PROVO, UT 84601

UCJA Rule 4-401.02: court proceedings, including electronic proceedings, may NOT be recorded, photographed, or transmitted. Failure to comply with this prohibition may be treated as contempt of court, punishable by fine and time in jail.

10-29-2025 Filed: Return of Electronic Notification

10-30-2025 Filed: Request for Notice of Motions to Close Judicial Proceedings and Records

10-30-2025 Filed: Return of Electronic Notification

11-03-2025 Filed: Motion Stipulation Motion to Order Transcript and Classify Transcript and Audio as Private

Filed by: TYLER JAMES ROBINSON

11-03-2025 Filed: Request/Notice to Submit Request to Submit Stipulated Motion to Order Transcript and Classify

11-03-2025 Filed: Order (Proposed) Order Granting Motion to Order Transcript and Classify

11-03-2025 Filed: Return of Electronic Notification

11-03-2025 Filed: Request/Notice to Submit Stipulated Motion Regarding Order to Preserve Evidence

11-03-2025 Filed: Motion Stipulated Motion Regarding Order to Preserve Evidence

Filed by: STATE OF UTAH

11-03-2025 Filed: Order (Proposed) Stipulated Order: (1) Setting Aside October 20, 2025, Order Granting Motion to Preserve Evidence; and (2) Granting In Part Motion to Preserve Evidence

11-03-2025 Filed: Return of Electronic Notification

11-04-2025 Filed order: Order Stipulated Order: (1) Setting Aside October 20, 2025, Order Granting Motion to Preserve Evidence; and (2) Granting In Part Motion to Preserve Evidence

Judge TONY F GRAF JR

Signed November 04, 2025

11-04-2025 Filed: Return of Electronic Notification

11-05-2025 Filed: Return of Electronic Notification

11-05-2025 Filed: Motion for Limited Intervention and Request for Notice of Motions to Close, Seal, or Reclassify

11-05-2025 Filed: Return of Electronic Notification

11-06-2025 Filed: Motion State s Motion to Amend or Clarify Court s Pre-Trial and Trial Publicity Order (Dkt. #23)

Filed by: STATE OF UTAH

11-06-2025 Filed: Return of Electronic Notification

11-10-2025 Filed: Defendant Tyler James Robinson s Response to Request for Notice of Motion to Close Judicial Proceedings and Records

11-10-2025 Filed: Return of Electronic Notification

11-13-2025 Filed order: Order Requiring Parties To Serve All Closure Or Reclassification Motions On The Media

Judge TONY F GRAF JR

Signed November 11, 2025

11-13-2025 Filed order: Order For Transcript Of October 24, 2025, Hearing

Judge TONY F GRAF JR

Signed November 11, 2025

11-13-2025 Filed: (Media) Notice of Service re Motion to Classify Transcript and Audio Filed November 3, 2025

11-13-2025 Filed: Return of Electronic Notification

11-14-2025 Filed: Return of Electronic Notification

11-14-2025 Filed: Approved Request and Order for Electronic Media Coverage of Court Proceedings

11-14-2025 Filed: Other - Not Signed Order (Proposed) Order Granting Motion to Order Transcript and Classify

11-14-2025 Filed: Return of Electronic Notification

11-15-2025 Filed: Return of Electronic Notification

11-17-2025 Filed order: Request and Order for Electronic Media Coverage of Court Proceedings

Judge TONY F GRAF JR

Signed November 14, 2025

11-17-2025 **** PROTECTED **** Filed: TRANSADMIN TRANSCRIPT for Hearing 10-24-2025

11-17-2025 Filed: TRANSADMIN TRANSCRIPT for Hearing 10-27-2025